



Cornhill
Direct

PLEASE KEEP YOUR POLICY IN A SAFE PLACE

CONTENTS

Home insurance policy	3
Introduction	4
Change you must tell us about	5
How to make a claim	5
Complaints procedure	6
Financial services compensation scheme	8
Safety precautions	8
The meaning of words	10
Section 1 - Buildings	11
Properties owner's liabilities	21
Section 2 - Contents	23
Occupier's personal and employer's liabilities	40
Section 3 - Personal possessions and money	45
Section 4 - Home legal advice	49
Section 5 - Home legal protection	59
Section 6 - Home emergency assistance	84

HOME INSURANCE POLICY

This document explains the procedures you must follow if you need to make a claim or need help. It also explains the benefits, terms and conditions of this policy.

It is important that you follow the steps shown to use the service, otherwise your claim will not be covered. Please keep this document in a safe place.

Privacy notice

Liverpool Victoria Insurance Company Limited is the controller of personal information. We'll keep you informed about how we use personal information in the document 'Privacy Policy', which is available:

- online at allianz.co.uk/broker/customer/privacy-notice

You have a number of rights concerning personal information. You can ask for a person to review an automated decision, and in certain circumstances to:

- access the personal information we hold about you or anyone on the policy.
- correct personal information you think is inaccurate or to update information you think is incomplete.
- have personal information deleted in certain circumstances.
- receive personal information in a portable format. This only applies to information you have provided to us.
- object to us processing personal information, under certain circumstances.

If you want to find out more or exercise these rights, contact GI Customer Support, Allianz, County Gates, Bournemouth, BH1 2AT or email us at gicustomersupport@allianz.co.uk.

You can also contact our Data Protection Officer: Data Protection Officer, 57 Ladymead, Guildford, Surrey, GU1 1DB, or via email at dataprotectionofficer@allianz.co.uk.

INTRODUCTION

This is your Cornhill Direct Home policy, please read it carefully and keep it in a safe place.

Make sure that you have the cover you need. Your schedule shows the sections of the policy you have chosen, the sums insured and any endorsements that apply to your policy.

Please check your schedule and your personal details form carefully to make sure that as far as you know the information you have supplied is correct. Remember, you must tell us if this information changes or is incorrect. If you don't, you may find that you are not covered if you need to claim.

The Important Information Notice issued with your documents also forms part of your policy. Please also read it carefully.

If you have any questions, please contact us on 0330 102 1731 and our Customer Service team will be pleased to help.

HOW YOUR COVER WORKS

We will insure you under the conditions of your policy (for those sections named in the schedule) for any insured event which takes place during the period of insurance and for which you have paid a premium.

Your policy ends at midnight on the last day of each period of insurance.

The period of insurance is shown in your schedule.

CHANGES YOU MUST TELL US ABOUT

You have told us certain facts about:

- your home; and
- the people who live within your home.

You must tell us at your first opportunity about any changes, which alter these facts.

General condition 15 lists the types of changes that you must notify us about.

If you do not tell us about changes, you may find that you are not covered if you need to claim.

HOW TO MAKE A CLAIM

- You should check your policy and schedule which give details of what is covered.
- Please refer to the general conditions at the end of your policy.
- If emergency repairs are necessary please contact our claims line for immediate help and advice on 0330 678 5012.
- If you need to make any temporary repairs keep the bills as these will be required when making your claim. We must be given the chance to look at the damage before permanent repairs are carried out.
- If someone is saying you are responsible for damage to their property or for injury to them, please let us know as soon as possible. Any summons or other legal document served on you must be immediately forwarded to us.
- Do not pay or offer or agree to pay any money or admit responsibility without our permission.

HOW TO MAKE A CLAIM CONTINUED

If you need to make a claim for loss of or damage to your property, our claims staff will be pleased to help you. All you need to do is phone us on 0330 678 5012. Tell us what happened and if covered we will complete a statement of fact from the information you provide and let you know the best way to get your claim dealt with. Completion of a claim form is not necessary.

It will help us deal with you speedily if you have the following details to hand when you call:

- your policy number or customer number;
- the date of the incident and the time of discovery;
- details of what happened; and
- any details you have about the property and the extent of the loss or damage.

COMPLAINTS PROCEDURE

Our aim is to get it right, first time, every time. If you have a complaint, we will try to resolve it straight away but if we can't, we will confirm we have received your complaint within five working days and we will do our best to resolve the problem within four weeks. If that's not possible, we will let you know when an answer may be expected.

If we are unable to resolve the problem, we will provide you with information about the Financial Ombudsman Service which offers a free, independent complaint resolution service.

If you have a complaint about buildings, contents or personal possessions contact our customer satisfaction manager at:

Jewry House
Jewry Street
Winchester
Hants SO23 8RZ
Phone: 0330 102 1731
Email: homeinsurance@cornhill-direct.net

COMPLAINTS PROCEDURE CONTINUED

If it's about the 24 hour home emergency assistance section of the policy contract:

Allianz Global Assistance
102 George Street
Croydon
CR9 6HD

If it's about the legal help for your family section of the policy contract:

Allianz Legal Protection
2530 The Quadrant
Aztec West
Almondsbury
Bristol
BS32 4AW
Phone: 0345 070 0886
Email: alpcomplaints@allianz.co.uk

You have the right to refer your complaint to the Financial Ombudsman Service, free of charge – but you must do so within six months of the date of the final response letter.

If you do not refer your complaint in time, the Ombudsman will not have our permission to consider your complaint and so will only be able to do so in very limited circumstances. For example, if the Ombudsman believes that the delay was as a result of exceptional circumstances.

The Financial Ombudsman Service
Exchange Tower
London
E14 9SR
Website: www.financial-ombudsman.org.uk
Telephone: 0800 023 4567 or 0300 123 9123
Email: complaint.info@financial-ombudsman.org.uk

Using our complaints procedure or contacting the FOS does not affect your legal rights.

FINANCIAL SERVICES COMPENSATION SCHEME

We are covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation from the scheme if we cannot meet our obligations. Whether or not you are able to claim and how much you may be entitled to will depend on the specific circumstances at the time.

For further information about the scheme please visit the FSCS at fscs.org.uk or call them on 0800 678 1100.

SAFETY PRECAUTIONS

We offer the following hints on precautions worth taking.

Fire prevention

Check your electrical equipment regularly. Make sure that you use the correct fuses and do not overload the circuits. Ask for the help of a qualified electrician if you are not sure.

If you leave the property for more than 24 hours, unplug all unnecessary appliances.

Fires often happen in kitchens. You can put out chip-pan fires by shutting out the air. Cover the pan with a lid or thick damp cloth.

Do not use water or try to carry the pan out of doors.

Flood

1. Gather essential items together either upstairs or in a high place.
2. Fill jugs and saucepans with clean water.
3. Move your family and pets upstairs, or to a high place with a means of escape.
4. Turn off gas, electricity and water supplies when floodwater is about to enter your home if safe to do so.
5. DO NOT touch sources of electricity when standing in floodwater.

SAFETY PRECAUTIONS CONTINUED

6. Keep listening to local radio for updates or call Floodline 0345 988 1188.
7. Floodwater can rise quickly, stay calm and reassure those around you. Call 999 if you are in danger.
8. Avoid walking or driving through floodwater.
9. Keep children and vulnerable people away from floodwater.
10. Wash your hands thoroughly if you touch floodwater.

Water damage

Lag exposed water pipes and tanks in the roof area and taps in the garage or outbuildings.

Cut off the water and drain the system if you leave the property without heat in winter or leave it unoccupied for more than 30 days in a row.

If pipes freeze, despite your precautions, thaw them out using hotwater bottles. Never use a blowlamp.

THE MEANING OF WORDS

If **we** explain what a word means, that word has the same meaning wherever it appears in **your policy** or **schedule** (other than sections 5 and 6). These words are highlighted in bold throughout **your policy**.

We have defined the most common words below:

Liverpool Victoria, we, us, our – Liverpool Victoria Insurance Company Limited.

Endorsement – Changes to the terms of **your** policy which will be shown in **your** schedule or continuation schedule.

Excess – The amount **you** have to pay if you make a claim. The **excess** amounts are shown in **your schedule**.

Heave – Upward movement of the ground beneath the **buildings** as a result of the soil expanding.

Insured event – Loss, damage, injury or liability arising from the listed 'events'.

Landslip – Downward movement of sloping ground.

Pedal Cycle(s) – Pedal cycles including motorised or power assisted pedal cycles which are not legally required to be registered in the UK for road use.

Policy – The contract of insurance between **you** and **us**.

Schedule – A printed document showing the sections of the **policy you** have chosen, the sums insured and any **endorsements** that apply to **your policy**.

Storm – Strong winds in excess of 47 knots (54 MPH) that may be accompanied by heavy rain, snow or sleet.

Subsidence – Downward movement of the ground beneath the **buildings** (other than by the action of made up ground settling or by structures bedding down within 10 years of construction).

Sum insured – The amount shown on **your schedule** as the most **we** will pay for claims resulting from one incident unless otherwise stated in this policy booklet or any **endorsement**.

Water table – The top level of underground water which has saturated the soil. The **water table** may rise or fall depending on the level of rain, sleet, snow, dew etc that filters in from upper levels of soil (unsaturated soil).

Your, your – The person named as the policyholder in the **schedule**, their partner and members of their family permanently living with them at their home address shown in the **schedule**.

We explain other words at the beginning of each section.

SECTION 1 - BUILDINGS

The meaning of words

Buildings – The buildings of **your home** built of brick, stone or concrete and roofed with slate, tile, metal, concrete, asbestos or asphalt (or other roofing materials if part of a flat roofed extension that is no larger than 25 square metres).

1. If they form part of the **buildings** it also includes:
 - fixtures and fittings;
 - wallpaper and other fixed decorations inside;
 - television, satellite and radio-receiving aerial, aerial fittings and masts fixed to your home, not covered by a contents policy;
 - fixed central-heating systems; and
 - stairlifts which can carry one person;
 - solar panels, wind turbines
 - built in gas and electric cookers and meters
2. On the same site as **your home** it also includes:
 - permanent swimming pools and hot tubs;
 - tennis hard courts;
 - terraces, drives and footpaths;
 - boundary and garden walls, gates, fences and hedges; and
 - domestic outbuildings.

SECTION 1 - BUILDINGS CONTINUED

3. Garages on nearby sites.

All of the above must belong to **you** or be **your** responsibility.

Buildings does not include:

- carpets; and
- laminated, wooden effect or vinyl floor coverings that could reasonably be removed and re-used.

Unfurnished – not having a bed, flooring, kitchen appliances and utensils to live there permanently.

Unoccupied – not having been lived in for more than 60 days in a row.

Your home – the private residence and gardens at the address of the insured property shown in the schedule.

What is covered

Your policy covers loss of or damage to **buildings** caused by events:

- 1 to 10 and 12 to 18 if **your schedule** shows that **you** have standard cover; or
- 1 to 18 if **your schedule** shows that **you** have accidental damage cover.

What is not covered by all of the following events:

- Loss, damage, injury or liability shown in the general exclusions.
- The total of the compulsory and voluntary excess figures (as shown in your policy schedule) for each Insured Event

SECTION 1 - BUILDINGS CONTINUED

Events

1. a **Fire, lightning, explosion, earthquake.**
b **Smoke.**

What is not covered

- Loss or damage caused by smoke arising from anything which happens gradually.
 - Loss or damage caused by scorching, melting or warping unless accompanied by flames.
2. **Aircraft** and other flying objects or articles dropped from them.
 3. **The buildings being hit by:**
 - a. vehicles;
 - b. animals; or
 - c. falling trees or branches.

What is not covered

- Loss or damage caused by felling or lopping trees.
4. **Theft or attempted theft.**

What is not covered

- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by a tenant, lodger or paying guest.
- Any theft or attempted theft to solar panels or wind turbines unless securely mounted in a non accessible position.
- Loss or damage that **you** do not report to the police at **your** first opportunity.
- Loss or damage resulting from theft or attempted theft by **you**.

SECTION 1 - BUILDINGS CONTINUED

5. Malicious people.

What is not covered

- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by a tenant, lodger or paying guest.

6. a Water leaking or overflowing from water tanks, fish tanks, apparatus or pipes or fixed heating installations.
- b Water freezing in water tanks, apparatus or pipes or fixed heating installations.

What is not covered:

- The first £250 of each claim.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by the failure or lack of appropriate sealant and/or grout.
- Loss or damage caused by subsidence, heave or landslip that results from water leaking.
- The cost to repair **your** water tanks, fish tanks, apparatus or pipes or fixed heating installations.

7. Storm or Flood.

What is not covered

- Loss or damage caused by a weather event that does not meet the definition of **storm** as set out in the meaning of words.
- Loss or damage caused by frost.
- Loss of or damage caused by wear and tear.
- Loss of or damage to fences, gates or hedges.
- Loss or damage to cellars and basements due to a rise in the **water table**.
- Anything which happens gradually.

SECTION 1 - BUILDINGS CONTINUED

- Loss or damage caused by water escaping from water tanks, fish tanks, apparatus, pipes or fixed heating installations.
- 8. Riot, civil commotion, strikes, labour or political disturbances.
- 9. a Oil leaking from a domestic heating installation at **your home**.
b Television, satellite and radio-receiving aerials, aerial fittings, solar panels, wind turbines and masts breaking or collapsing.
- 10. Subsidence or heave of the site on which the **buildings** stand, or landslip.

What is not covered

- Damage caused to swimming pools, tennis hard courts, terraces, drives, footpaths, walls, gates or fences unless **your home**, its domestic outbuildings or garages are damaged by the same cause at the same time.
 - The first £1,000 of each claim.
 - Damage caused by a riverbank or the coast being worn away.
 - Destruction or damage to or resulting from solid floor slabs moving unless the foundations beneath the outside walls of the **building** are damaged by the same cause at the same time.
 - Damage within 10 years of construction caused by structures bedding down or made-up ground settling.
11. **Accidental loss or damage (your schedule** will show cover as **accidental damage** if this event is insured by **your policy**).

What is not covered

- Loss or damage caused by wear and tear.
- Loss or damage caused by the action of made up ground settling or by structures bedding down within 10 years of construction.
- Loss or damage caused by rot, mildew, rust, corrosion, insects, woodworm, rats, mice, squirrels, owls, birds, foxes, bats, badgers, repair or renovation.
- Loss or damage caused by electronic, electrical or mechanical breakdown or failure.

SECTION 1 - BUILDINGS CONTINUED

- Loss or damage caused by faulty design, specification, materials or workmanship.
- Loss or damage which happens gradually, or loss of value.
- Loss or damage caused by frost.
- The exclusions that apply to events 1 to 10 also apply to event 11.
- Loss or damage caused by chewing, scratching, fouling or tearing by domestic animals.
- Loss or damage caused while **you** have a tenant, lodger or paying guest living in **your home**.
- Loss or damage caused by water escaping from water tanks, fish tanks, apparatus, pipes or fixed heating installations.
- Loss or damage caused by the escape of water from guttering, rainwater downpipes, roof valleys and gullies.

12. **Underground service pipes and cables.**

We will pay the costs which **you** are responsible for to repair accidental damage caused by sudden external means to:

- Underground water, gas, sewer and drain pipes, underground electricity and phone cables which reach from the **buildings** to the public supply; and
- Septic tanks and drain inspection covers.

What is not covered

- The first £250 of each claim.
- Gradual deterioration.
- Damage caused by faulty design, faulty plans, faulty specifications or faulty materials.

SECTION 1 - BUILDINGS CONTINUED

13. Glass and sanitary fittings.

Accidental breakage of:

- all fixed glass including double glazing;
- glass in solar panel units;
- fixed baths, wash basins, pedestals, sinks, splash backs, shower trays, bidets, toilet pans and toilet cisterns, all contained within the buildings; and
- Ceramic hobs built into kitchen furniture.

What is not covered

Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.

14. Alternative accommodation and loss of rent.

While the **buildings** are unfit to live in because of an insured event, **we** will pay:

- the cost of other comparable accommodation for **you** and **your** domestic pets;
- rent which **you** would normally pay for the **buildings**; or
- loss of rent **you** would have received if the **buildings** were fit to live in.

What is not covered

Any amount over 20% of the **sum insured** by this section as shown on **your schedule**.

15. Fixed water pipes and tanks.

We will pay for damage to fixed water pipes and tanks caused by internal stress due to freezing, overheating or water pressure which is too high.

SECTION 1 - BUILDINGS CONTINUED

What is not covered

- Loss or damage if the pipe or tank is in an outbuilding or in the open.
- Loss or damage caused by rust, corrosion or wear and tear.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.

16. Emergency entry.

Loss of or damage to **your home** caused by forced entry due to a medical emergency, or perceived emergency, involving **you**.

17. Trace and Access.

If the **buildings** are damaged by events 6a or 9a of this section, **we** will pay the reasonable and necessary cost of finding the source of the leak including the making good of any damage caused during the search.

What is not covered

- Any amount over £5,000.

18. Loss or theft of keys.

We will pay the costs of replacing keys and locks if keys to outside doors and windows or to domestic safes and alarm systems within **your home** are stolen or accidentally lost.

SECTION 1 - BUILDINGS CONTINUED

Selling your home

When **you** sell **your home**, the person who buys it will be covered by the **buildings** insurance in this **policy**, as long as they have no other insurance in force. This will apply up to the date the sale is completed.

How we settle claims

See also general exclusion 5 and general condition 3.

The amount **we** will pay for loss or damage to the **buildings** will be the cost of the following.

- a. Repairing or replacing the damaged items without taking off an amount for wear and tear or loss of value, as long as:

- the **sum insured** will cover the cost of rebuilding all the **buildings**;
- the **buildings** have been maintained in good condition.

If the **sum insured** will not cover the loss or damage, the amount **we** will pay will be the cost of repairs or replacement less an amount for wear and tear.

If the repair or replacement is not carried out, the amount **we** will pay will be the loss of value resulting from the loss or damage but not more than what it would have cost to repair or replace the item if this had been carried out straight away.

- b. Demolishing, removing debris, shoring up, or propping up parts of the **buildings**.
- c. Architects', surveyors', legal and other fees for estimates, plans, specifications, quantities, tenders and supervision.

Where **we** agree that any of the above need to be appointed and **you** arrange **your** own, **we** will not pay more than the fees authorised under the scales of:

- the Royal Institute of British Architects;
- the schedule of professional charges of the Royal Institution of Chartered Surveyors; and
- the Law Society.

SECTION 1 - BUILDINGS CONTINUED

What is not covered

- **We** will not pay any costs **you** incur for preparing and submitting a claim.
- d. Any extra costs to keep to building or other regulations or within the bylaws of any local authority but only for damaged parts of the property.

What is not covered

- This does not include any extra costs **you** pay after notice has been served on **you**.
- e. Any permanent repairs made by our suppliers are guaranteed.

Matching sets or suites

We will pay **you** for damaged items that form part of a matching set or suite but not for the other items of the set or suite which are not damaged. For example, if one kitchen cupboard is damaged **we** will replace or repair the damaged cupboard only, not the whole kitchen. If the damaged parts cannot be matched or replaced **we** will pay up to 50% towards the replacement of the undamaged parts.

Sum insured

The **sum insured you** have chosen must be enough to pay for the cost of rebuilding the **buildings** after taking account of the expenses and fees mentioned in b, c and d above.

Index linking

We will change **your sum insured** for **buildings** in line with the House Rebuilding Cost Index published by the Buildings Cost Information Service of the Royal Institution of Chartered Surveyors. **We** will not charge any extra premium for any increases in **your sum insured** due to index linking during each period of insurance. When **we** invite **you** to renew **your** cover, **we** will show **you your** updated **sum insured** and premium for the following period of insurance.

We may use another appropriate index as the basis for changing **your sum insured**.

PROPERTY OWNER'S LIABILITIES

The meaning of words

Injury – bodily injury including death and disease.

Your home – the private home and all land belonging to it at the address of the insured property shown in the **schedule**.

What is covered

Your policy provides cover caused by the following events which happen during the period of insurance.

We will pay all amounts you legally have to pay as:

- compensation and claimant's costs and expenses; and
- legal costs and expenses **you** pay with our written permission in connection with defending any claim.

If **you** die, **your** personal representative will have the benefit of this section for any liability **you** have that is covered by this section.

Events

1. Property owner's liability

We will cover liability arising because **you** own **your home** (not as occupier) as the result of accidental:

- a. **injury** to any person; or
- b. loss of or damage to property.

2. Defective Premises Act

We will pay any amounts **you** are liable for under section 3 of the Defective Premises Act 1972 or section 5 of the Defective Premises (Northern Ireland) Order 1975 or any subsequent legislation arising from accidental:

- a. **injury** to any person; or
- b. loss of or damage to property happening during the period of insurance.

PROPERTY OWNER'S LIABILITIES CONTINUED

This cover applies to any property **you** previously owned which was lived in by **you** or **your** tenants.

If **Buildings** cover under this **policy** is cancelled or cover has ended, cover under this event (event 2 Defective Premises Act) will continue for seven years for **your home**.

What is not covered:

1. **We** will not pay more than £2,000,000 under this section for all compensation and claimant's costs and expenses for any one claim or series of claims arising out of any one event.
2. Any liability **you** have under any agreement unless **you** would have the same liability if the agreement did not exist.
3. Any liability for loss of or damage to any property belonging to **you** or **you** are in charge or control of.
4. Any liability for injuring an employee arising as a result of **you** employing them under a contract of service or apprenticeship.
5. Any liability for loss or damage caused by or arising out of the following:
 - Any passenger lift which **you** are responsible for maintaining other than stairlifts and other similar equipment which can only carry one person.
 - **You** owning, being a tenant or living on any land or building other than **your home**.
 - Any wilful or malicious act.
6. Any liability which is insured by or would be insured by any other policy if this section did not exist.
7. Any liability arising directly or indirectly out of **your** job, business, trade or profession.
8. Any liability if **you** are injured.
9. Any liability for fines, penalties or liquidated damages or aggravated, punitive or exemplary damages or any damages resulting from multiplying the compensatory damages.
10. Loss, damage, **injury** or liability shown in the general exceptions.

SECTION 2 - CONTENTS

The meaning of words

Contents – household goods, **office equipment** and personal belongings which **you** own or are responsible for, in **your home**. This includes:

1. fixtures and fittings other than landlord's fixtures and fittings;
2. television, satellite and radio-receiving aerials, aerial fittings, solar panels, wind turbines and masts fixed to your home;
3. phones;
4. valuables – jewellery, gold and silver articles (including plated articles) watches, gemstones, clocks, furs, pictures, sculptures, other works of art and collections of stamps, medals and coins.
5. freestanding gas and electric cookers;
6. all equipment **you** own or for which **you** are responsible and use in connection with a registered disability including any fixtures and fittings installed and not covered by **your buildings** policy;
7. laminated, wooden effect, vinyl or lino floor coverings that could reasonably be removed and re-used;
8. carpets;
9. portable hot tubs;
10. pedal cycles.

Office equipment – Computers, external hard drives, memory sticks, software, printers, fax machines, photocopiers, typewriters, telecommunications equipment and office furniture used in **your home** in connection with **your** business or job but not worth more than £7,500 in total;

Contents does not include:

- property **you** have insured under any other policy;
- securities (financial certificates such as shares and bonds), certificates and documents (except those covered under event 22);

SECTION 2 - CONTENTS CONTINUED

- mechanically propelled or assisted vehicles (which includes adult's and children's motor vehicles, adult's and children's motor cycles and go-karts) or their parts and accessories. Gardening machinery and wheelchairs are covered;
- caravans and trailers or their parts and accessories;
- aircraft, hovercraft and watercraft (which includes sailboards, windsurfers and models) or their parts and accessories;
- lottery tickets and raffle tickets;
- laminated, wooden effect or vinyl floor coverings that could not reasonably be removed and re-used;
- animals;
- any part of the structure of **your home** (central heating system, ceiling, wallpaper or similar except those covered under event 26); or
- property which **you** own or use at any time for business, professional or trade purposes (except for office equipment).

Your home – a private home at the address of the **contents** insured shown in the **schedule**, built of brick, stone or concrete and roofed with slate, tile, metal, concrete, asbestos or asphalt (or other roofing materials if part of a flat roofed extension that is no larger than 25 square metres). It also includes domestic garages and outbuildings on the same premises used in connection with **your home**. This includes garages on nearby sites used for domestic purposes.

What is covered

Your policy covers loss of or damage to **contents** caused by events:

- 1 to 10 and 12 to 34 if **your schedule** shows that **you** have standard cover; or
- 1 to 34 if **your schedule** shows that **you** have accidental damage cover.

SECTION 2 - CONTENTS CONTINUED

What is not covered by all of the following events

- The total of the compulsory and voluntary **excess** figures (as shown in **your policy schedule**) for each **insured event** other than Event 23.
- Loss, damage, injury or liability shown in the general exclusions.

Events

1. a **Fire, lightning, explosion, earthquake.**
b **Smoke.**

What is not covered

- Loss or damage caused by smoke arising from anything which happens gradually.
- Loss or damage caused by scorching, melting or warping unless accompanied by flames.

2. **Aircraft** and other flying objects or articles dropped from them.

3. **The buildings being hit by:**

- a. vehicles;
- b. animals; or
- c. falling trees or branches.

What is not covered

- Loss or damage caused by domestic animals.
- Loss or damage caused by felling or lopping trees.

4. **Theft or attempted theft.**

What is not covered

- Any theft or attempted theft which does not involve force or violence to get into or out of **your home** while **you** have a tenant, lodger or paying guest.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.

SECTION 2 - CONTENTS CONTINUED

- Any amount over £7,500 for loss of or damage to contents contained in **your** garages, greenhouses or outbuildings.
- Loss or damage caused by theft or attempted theft from any vehicle that is not occupied unless all windows and sunroofs are securely closed and all doors and the boot are locked. **Contents** must be completely hidden within the vehicle in a glove compartment, locked luggage compartment or locked boot and the vehicle must be parked within the boundaries of **your home**.
- Any amount over £1,000 for theft or attempted theft from any vehicle that is not occupied and is parked within the boundaries of **your home**.
- Loss or damage resulting from theft or attempted theft by **you**.
- Loss or damage that **you** do not report to the police at **your** first opportunity.

5. **Malicious people.**

What is not covered

- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by a tenant, lodger or paying guest.
- Loss or damage arising from the malicious erasure, distortion or misfiling of any computer software, data or files unless the **contents** are damaged by the same cause at the same time.

6. **Water leaking or overflowing from water tanks, apparatus or pipes or fixed heating installations or fixed water tanks or fish tanks.**

What is not covered

- The first £250 of each claim.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by the failure or lack of appropriate sealant and/or grout.
- The cost to repair **your** water tanks, fish tanks, apparatus or pipes or fixed heating installations.

SECTION 2 - CONTENTS CONTINUED

7. **Storm or Flood.**

What is not covered

- Loss or damage caused by a weather event that does not meet the definition of **storm** as set out in the meaning of words.
- Loss or damage caused by frost.
- Loss or damage to cellars and basements due to a rise in the **water table**.
- Anything which happens gradually.
- Loss or damage caused by water escaping from water tanks, fish tanks, apparatus, pipes or fixed heating installations.

8. **Riot, civil commotion, strikes, labour or political disturbances.**

9. a **Oil leaking from a domestic heating installation at your home.**

What is not covered

- Damage caused to the installation.
- b **Television, satellite and radio-receiving aerials, aerial fittings, solar panels, wind turbines and masts breaking or collapsing.**

10. **Subsidence or heave of the site on which the buildings stand, or landslip.**

What is not covered

- Damage caused by a riverbank or the coast being worn away.
- Destruction or damage to or resulting from solid floor slabs moving unless the foundations beneath the outside walls of the building are damaged by the same cause at the same time.
- Damage within 10 years of construction caused by structures bedding down or made-up ground settling.

SECTION 2 - CONTENTS CONTINUED

11. **Accidental loss or damage** (your schedule will show cover as **accidental damage** if this event is insured by **your policy**).

What is not covered

- Property not inside **your home**.
- Contact lenses.
- Property insured under event 27.
- Loss or damage while **you** have a tenant, lodger or paying guest living in **your home**.
- Loss or damage caused by the action of made up ground settling or by structures bedding down within 10 years of construction.
- Loss or damage caused by wear and tear other than loss of or damage to any item resulting from wear and tear to a clasp, setting or other fastening, carrier or container.
- Loss or damage caused by rot, mildew, rust, corrosion, insects, woodworm, rats, mice, squirrels, owls, birds, foxes, bats, badgers, repair or renovation.
- Loss or damage caused by electronic, electrical or mechanical breakdown or failure.
- Loss or damage to computer discs, software, flash drives, memory sticks, records, cassettes, tapes or loss of recording.
- Loss or damage arising from the malicious erasure, distortion or misfiling of any software, data or files.
- Loss or damage caused by faulty design, specification, materials or workmanship.
- Loss or damage which happens gradually, or loss of value.
- Loss or damage caused by overwinding and damage to the inside of watches or clocks.
- Loss or damage caused by chewing, scratching, fouling or tearing by domestic animals.

SECTION 2 - CONTENTS CONTINUED

- The exclusions that apply to events 1 to 10 also apply to event 11.
- Loss or damage caused by the escape of water from guttering, rainwater downpipes, roof valleys and gullies.

12. **Belongings you remove from your home.**

We will cover **contents you** temporarily remove from **your home** against loss or damage resulting from events 1 to 3 and 5 to 9.

Contents will also be covered against event 4 if the theft is from:

- any bank or safety-deposit box;
- a private home in which somebody is living;
- any building where **you** are employed or carrying on a business; or
- any other building if force or violence is used to get into or out of the building.
- Loss or damage caused by the action of made up ground settling or by structures bedding down within 10 years of construction.

What is not covered

- **Contents you** remove to sell, exhibit or property kept in furniture storage units (unless it is covered under events 17 and 18).
- **Storm** or flood for property not inside a building.
- Cash, bank and currency notes and stamps.
- **Contents** covered under event 29.
- Any amount over 20% of the **contents sum insured**.
- **Contents** inside the boundaries of the land belonging to **your home**.

SECTION 2 - CONTENTS CONTINUED

13. **Property of resident domestic staff.**

We will pay for loss or damage caused by any of the events insured by this section to clothing and personal belongings of **your** domestic staff while in **your home** or in any private home, boarding house, lodging house, hotel or inn in which **your** staff are living with **you**.

What is not covered

- Cash, bank and currency notes and stamps.
- Property insured under any other policy.

14. **Home entertainment equipment and computers.**

We will pay for accidental loss of or damage to television sets, video recorders, digital set-top boxes, DVD players, games consoles, radios, recording and other audio equipment and computer equipment in **your home**.

What is not covered

- Items designed to be portable, including portable computers, mobile/smart/ android/ phones, laptops, iPhones/iPads/iPods and tablets.
- Damage to discs, records, cassettes, software, memory cartridges, flash drives, tapes, loss of recording or data.
- Electronic, electrical or mechanical breakdown or failure including equipment failing to recognise any date.
- Loss or damage arising from the malicious erasure, distortion or misfiling of any computer software, data or files.
- Wear and tear.
- Damage caused during any process of repair, alteration, or from an item being operated incorrectly.
- Damage caused by domestic animals.
- Damage caused by a tenant, lodger or paying guest.

SECTION 2 - CONTENTS CONTINUED

15. Downloaded Audio/Visual files.

We will pay to replace legally downloaded audio/visual files lost as a result of events 1-10 insured by this section.

What is not covered

- Any amount over £1,000.
- Loss or damage arising from the malicious erasure, distortion or misfiling of any computer software, data or files unless the **contents** are damaged by the same cause at the same time.

16. Accidental breakage of mirrors or glass.

We will pay for accidental breakage of mirrors, plate-glass tops to furniture, fixed glass in furniture, cooking hobs and oven doors while in **your home**.

What is not covered

- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- If no equivalent part is available the most **we** will pay is £250.

17. House removal.

We will pay for accidental loss of or accidental damage to **contents** while they are:

- a being moved by professional removal contractors to **your** new home in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man; or
- b in temporary storage for up to seven days in a furniture storage unit.

What is not covered

- Loss or damage to **valuables**.
- Loss or damage if **you** have other insurance.
- Cracking, scratching or breakage of china, glass or other brittle articles unless they are packed by professional packers.

SECTION 2 - CONTENTS CONTINUED

- Loss or damage while **your contents** are transported by sea.
- Loss or damage to **office equipment**.

18. **Contents in a furniture-storage unit.**

While **your contents** are temporarily stored in a furniture storage unit in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man for up to 92 days **we** will pay for loss or damage by:

- fire, explosion, lightning, earthquake or smoke; or
- theft or attempted theft which involves force and violence to get into or out of the furniture-storage unit.

What is not covered

- **Valuables.**
- Loss or damage if **you** have other insurance.
- Loss or damage in the first seven days the **contents** are in storage (except as provided by event 17 of this section).
- Anything which happens gradually.

19. **Contents in the garden.**

We will pay for loss of or damage to **contents**, garden furniture and garden ornaments by any of the events 1 to 10 insured by this section if **you** leave them in the open within the grounds of **your home**.

What is not covered

- **Contents** in or on motor vehicles, caravans, trailers or motor cycles.
- Trees, shrubs and plants.
- Any amount over £750.

SECTION 2 - CONTENTS CONTINUED

20. **Loss of metered water and domestic heating oil.**

We will pay for loss of metered water or domestic heating oil due to **your** domestic water or heating installations being damaged.

21. **Weddings, Civil Partnerships and Religious Festivals.**

We will automatically increase the **contents sum insured** by 10% for one month before and one month after the day of a wedding, civil partnership or religious festival to cover presents bought or received for that occasion providing this falls within the period of insurance.

22. **Deeds and documents.**

We will pay for loss or damage by events 1 to 10 to documents (other than money), which **you** own, while they are in **your home** or in a safe deposit, bank or solicitor's strongroom.

23. **Compensation for your death.**

We will pay £5000 if **you** die as a result of violence from thieves or fire that occurs within **your home**. For **us** to pay a claim, **your** death must happen within three months of the incident.

24. **Counselling victims.**

If **you** suffer emotional stress as a result of an event insured by this section, **we** will pay **you** the cost of any professional counselling which is recommended by a qualified medical practitioner and which **we** have approved before **you** receive counselling.

What is not covered

- Any amount over £1,500.

SECTION 2 - CONTENTS CONTINUED

25. Rent.

If **your home** is damaged by any of the events insured by this section and it cannot be lived in, **we** will pay for:

- a. any rent **you** may have to continue to pay;
- b. other expenses **you** have to pay for other accommodation but only for the period necessary to put **your home** back in a fit state to live in;
- c. expenses **you** have to pay for suitable accommodation for **your** domestic pets; and
- d. the cost of temporarily storing **your contents**.

What is not covered

- Any amount over 20% of the **sum insured** by this section, as shown on **your schedule**.

26. Tenant's liability.

We will pay all amounts for which **you** are responsible as tenant (and not as owner) for the following.

- a Loss of or damage to **your home** directly caused by:
 1. fire, lightning, explosion, earthquake, aircraft, **storm** or flood;
 2. bursting, leaking or overflowing water tanks, apparatus or pipes;
 3. oil leaking from any fixed heating installation;
 4. theft or attempted theft;
 5. television, satellite and radio-receiving aerials, aerial fittings and masts breaking or collapsing; or
 6. smoke.

SECTION 2 - CONTENTS CONTINUED

- b. **We** will pay all amounts for accidental breakage of all fixed glass including double glazing, fixed sanitary fittings forming part of **your home** and glass in solar panel units.
- c. **We** will pay for accidental damage caused by external means:
 - 1. to underground water, gas, sewer, or drainpipes, underground electricity and telephone cables which reach from **your home** to the public supply; and
 - 2. cess pits, septic tanks and drain inspection covers.
- d. Accidental damage to fixed tanks, apparatus or pipes caused by internal stress due to freezing, overheating or excessive water pressure.

What is not covered

- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Any amount over 10% of the **contents sum insured**.
- Loss or damage caused by frost, landslip, subsidence or heave.
- For event 26a6 only - anything which happens gradually.

27. **Food in freezers.**

Loss of or damage to food in a freezer within **your home** caused by a rise or fall in temperature or contamination by the refrigerant or refrigerant fumes.

What is not covered

- Loss or damage as a result of a deliberate act by **you** or the power supply company.

28. **Loss or theft of keys.**

We will pay the costs of replacing keys and locks if keys to outside doors and windows or to domestic safes and alarm systems within **your home** are stolen or accidentally lost.

SECTION 2 - CONTENTS CONTINUED

29. **Students' personal belongings.**

Loss or damage resulting from events 1 to 10 when **you** are living away from **your home** while attending college or university.

What is not covered

- Any amount over £3,000.
- Any theft or attempted theft which does not involve force and violence to get into or out of a building.

30. **Transporting your wheelchair.**

We will pay the costs of transporting **you** and **your** wheelchair (including powered chairs) to **your home** if the chair is:

- accidentally damaged and is unsafe or cannot be used; or
- lost or stolen.

What is not covered

- Any amount over £250.

31. **Shopping.**

Loss of or damage to food and other goods while **you** are transporting them from the shop where **you** bought them to **your home**.

What is not covered

- Any amount over £250.
- Loss or damage caused by theft or attempted theft from any vehicle that is not occupied unless all windows and sunroofs are securely closed and all doors and the boot are locked. The **contents** must be completely hidden within the vehicle in a glove compartment, locked luggage compartment or locked boot.
- Loss of or damage to food from defrosting.
- Loss or damage **you** cannot provide receipts for.

SECTION 2 - CONTENTS CONTINUED

32. **Plants.**

We will pay for loss or damage caused by events 1, 2, 3, 4, 5, 8 and 10 insured by this section to trees, shrubs, hedges, bushes, lawns and plants within the grounds of **your home**.

What is not covered

- Any amount over £250.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss of or damage to food from defrosting.
- Damage caused by weight of snow.

33. **Visitor's personal belongings.**

We will pay for loss or damage caused by events 1 to 10 insured by this section to **your** visitor's personal belongings whilst in **your home**.

What is not covered

- Any amount over £1,000.
- Items covered by other insurance.

34. **Jury Service**

We will pay up to £20 per day for any financial loss resulting from **you** or **your** partner being called for jury service.

What is not covered

- Any amount over £400.
- Expenses that can be recovered from any other source.

SECTION 2 - CONTENTS CONTINUED

Limits

The most **we** will pay for the following property is shown below.

1. 35% of the **sum insured** by section 2 - **Contents** for jewellery, gold and silver articles (including plated articles), watches, clocks, furs, pictures, sculptures, other works of art and collections of stamps, medals and coins not insured under section 3 - Personal possessions.
2. 15% of the **sum insured** by section 2 - **Contents** for any one item or collection mentioned in limit 1 above.
3. £500 for cash, bank or currency notes, cheques, postal or money orders, postage stamps, National Savings stamps and certificates, traveller's cheques, gift vouchers (subject to proof of purchase or ownership) premium bonds, luncheon vouchers.
4. Any permanent repairs made by **our** suppliers are guaranteed.

How we settle claims

See also general exclusion 5 and general condition 3.

1. Items other than clothing and household linen.
 - a. **We** will pay to replace items which are totally lost or destroyed. The replacement item will be based on the specification of the original item.
We will not take off an amount for wear and tear or loss of value as long as:
 - the **sum insured** is enough to replace the insured

If **you** do not replace the insured property which is totally lost or destroyed straight away or if the **sum insured** is not enough to pay for replacing the insured property, the amount **we** will pay will be market value of the items (Market value is the cost of replacing the item at the time loss or damage taking into account its age and condition).

- b. **We** will pay to repair damaged items.

SECTION 2 - CONTENTS CONTINUED

2. Clothing and household linen.
 - a. **We** will pay to replace items which are destroyed. **We** will take off an amount for wear and tear or loss of value.
 - b. **We** will pay to repair damaged items.

3. **We** will pay to remove debris.

Any permanent repairs made by **our** suppliers are guaranteed.

Matching sets and suites

We will pay **you** for damaged items that form part of a matching set or suite but not for the other items of the set or suite which are not damaged. For example, if **you** damage one chair from a set the damaged chair will be repaired or replaced but not the whole set.

If the damaged parts cannot be matched or replaced **we** will pay up to 50% towards the replacement of the undamaged parts.

Sum insured

The **sum insured you** choose must be equal to the current replacement value of the **contents** within **your home**. **We** will not pay more than the **sum insured** for loss of or damage to the property by any of the events 1 to 17.

Index linking

We will change your **sum insured** for **contents** in line with the Consumer Price Index. **We** will not charge **you** an extra premium for any increases in **your sum insured** due to index linking during each period of insurance. When **we** invite **you** to renew **your** cover, **we** will show **you your** updated **sum insured** and premium for the following period of insurance.

We may use another appropriate index as the basis for adjustment.

OCCUPIER'S, PERSONAL AND EMPLOYER'S LIABILITIES

The meaning of words

Injury – bodily injury including death and disease.

Your home – the private home and all land belonging to it at the address of the insured property shown in the **schedule**.

Dangerous animal – an animal defined as dangerous in the animal Animals Act 1971 or a dog of a type described in section 1 of the Dangerous Dogs Act 1991 or any subsequent legislation.

What is covered

Your policy provides cover caused by the following events which happen during the period of insurance.

We will pay all amounts **you** legally have to pay as:

- compensation and claimant's costs and expenses; and
- legal costs and expenses **you** pay with **our** written permission in connection with defending any claim.

If **you** die, **your** personal representative will have the benefit of this section for any liability **you** have that is covered by this section.

Events

1. Occupier's and personal liability

We will cover liability arising as the result of accidental **injury** to any person and accidental loss of or damage to property:

- a. because **you** live in **your home** (not as owner); or
- b. while **you**, as a private individual, are in or away from **your** home (not as owner).

OCCUPIER'S, PERSONAL AND EMPLOYER'S LIABILITIES

CONTINUED

2. Travel overseas

We will cover liability for **injury**, loss or damage which happens during any journey or temporary visit to any country in the world in which **you** do not own property if **you** live in:

- a. Great Britain;
- b. Northern Ireland;
- c. the Isle of Man; or
- d. the Channel Islands.

3. Court awards you cannot recover

If **you** get a judgement from any court in Great Britain, Northern Ireland, the Isle of Man or the Channel Islands for compensation and claimant's costs and expenses for injury or loss of or damage to property against any company or individual based in the countries named above and that judgement is not paid for more than three months, **we** will pay **you** the amount of unpaid compensation or costs.

We will only do this if:

- this section would have applied had the award been made against **you** rather than to **you**;
- there is no appeal outstanding; and

If **we** make a payment under this event, and **you** or **your** personal representatives transfer any rights **you** have under the judgement to **us**.

4. Temporary accommodation

Points 2 and 4e of what is not covered (shown below) will not apply to accommodation **you** temporarily live in for less than three months.

OCCUPIER'S, PERSONAL AND EMPLOYER'S LIABILITIES

CONTINUED

5. Employer's liability

We will pay all amounts **you** are liable for if any employee is injured arising out of his or her employment under a contract of service or apprenticeship in connection with **your home** or private household. Points 1 to 4 of what is not covered (shown below) and general exception 2 of this **policy** will not apply to this event.

What is not covered

1. **We** will not pay more than £2,000,000 under events 1, 2, 3 and 4 of this section for all compensation and claimant's costs and expenses for any one claim or series of claims arising out of any one event.

We will not pay more than £10,000,000 under event 5 of this section for all compensation and claimant's costs and expenses for any one claim or series of claims arising out of any one event.

2. Any liability **you** have under any agreement unless **you** would have the same liability if the agreement did not exist.
3. Any liability for loss of or damage to any property belonging to **you** or **you** are in charge or control of (unless this is covered under event 4).
4. Any liability for injuring an employee arising as a result of **you** employing them under a contract of service or apprenticeship (unless this is covered under event 5).
5. Any liability caused by or arising out of the following.
 - a **You** owning, possessing, or using (other than as a passenger):
 - any mechanically-propelled vehicle or any trailer attached to it other than:
 - any **pedal cycles** or
 - any pedestrian-controlled garden tools, powered wheelchairs or ride-on garden tools which are not required to be registered for road use.

OCCUPIER'S, PERSONAL AND EMPLOYER'S LIABILITIES

CONTINUED

- any mechanically-propelled vehicle or any trailer attached to it other than:
 - aircraft and model aircraft including drones; or
 - hovercraft or watercraft (other than any handpropelled boat, pontoon, sailboard or surfboard or any boat hired for no more than 12 hours and which is under 18 feet long and cannot travel faster than 17 knots).
 - b. **You** owning, possessing, or using a **dangerous animal** or a specially-controlled dog as described in the Dangerous Dogs Act.
 - c. Using any horse for hunting, racing or polo.
 - d. Any passenger lift which **you** are responsible for maintaining other than stairlifts and other similar equipment which can only carry one person.
 - e. **You** owning, being a tenant or living on any land or building other than **your home**.
 - f. **You** owning, possessing, or using a firearm other than licensed sporting guns and airguns.
 - g. Escape of an animal or animals from land on which they are usually kept (other than from **your home**).
 - h. Any wilful or malicious act.
6. Any liability which is insured by or would be insured by any other policy if this section did not exist.
 7. Any liability arising directly or indirectly out of **your** job, business, trade or profession.
 8. Any liability if **you** are injured (this does not apply to event 3, court awards that **you** cannot recover).
 9. Any liability for fines, penalties or liquidated damages or aggravated, punitive or exemplary damages or any damages resulting from multiplying the compensatory damages.

OCCUPIER'S, PERSONAL AND EMPLOYER'S LIABILITIES

CONTINUED

10. For event 3 only - any liability if the person owing **you** money is also insured by this **policy**.
11. Loss, damage, **injury** or liability shown in the general exceptions.
12. For event 5 only - any liability for causing the death of or injuring any employee if they have driven or been a passenger in a motor vehicle if **you** need insurance under the Road Traffic Act.
13. Any liability arising directly or indirectly from the transmission of any contagious disease by **you**.

SECTION 3 - PERSONAL POSSESSIONS AND MONEY

This section and the insured events only apply when shown in **your schedule**.

The meaning of words

Geographical limits – the British Isles, Europe, Mediterranean coast and islands, Madeira and Canary Isles.

– anywhere else in the world (for up to 60 days in any one year of insurance) if **you** are travelling.

Money – cash, bank or currency notes, cheques, postal or money orders, postage stamps, National Savings stamps and certificates and traveller's cheques.

Pedal Cycle(s) – pedal cycles including motorised or power assisted pedal cycles which are not legally required to be registered in the UK for road use.

Specified personal possessions – property shown in the personal possessions summary attached to **your schedule**, which **you** own or for which **you** are responsible.

Sum insured – The amount shown on **your schedule** as the most **we** will pay for claims resulting from one incident unless otherwise stated in this policy booklet or any **endorsement**.

Unspecified personal possessions – clothing, baggage, personal items you normally wear or carry (including gold and silver items), jewellery, furs, watches, photographic equipment, binoculars, telescopes, portable stereo and audio equipment, sports equipment, mobility scooters (that are not registered for road use) and **pedal cycles** with an individual value under £1,000, which **you** own or for which **you** are responsible.

Your home – the private home and all land belonging to it at the address of the insured property shown in the **schedule**.

What is covered

Event 1 - Unspecified personal possessions and money

Accidental loss of or damage to **unspecified personal possessions** and **money** while **you** are within the **geographical limits** of this section.

SECTION 3 - PERSONAL POSSESSIONS AND MONEY

CONTINUED

Event 2 - Specified personal possessions

Accidental loss of or damage to **specified personal possessions** while **you** are within the **geographical limits** of this section.

Events 1 and 2 – What is not covered

- The total of the compulsory and voluntary **excess** figures (as shown in **your** policy **schedule**) for each insured event.
- Loss, damage, injury or liability shown in the general exceptions.
- Loss of or damage to bats, hockey sticks, golf clubs, fishing equipment and racquets whilst **you** or anybody with **your** permission are using them.
- Loss of or damage to skiing or underwater equipment whilst **you** or anybody with **your** permission are using it.
- Loss or damage caused by wear and tear, other than loss of or damage to any item resulting from wear and tear of a clasp, setting, or other fastening, carrier or container.
- Loss or damage caused by rot, mildew, rust, corrosion, insects, woodworm, rats, mice, squirrels, owls, birds, foxes, bats, badgers, repair or renovation.
- Loss or damage caused by electronic, electrical or mechanical breakdown or failure.
- Loss or damage caused by faulty design, specification, materials or workmanship.
- Loss or damage which happens gradually or loss of value.
- Loss or damage caused by overwinding and damage to the inside of watches or clocks.
- Loss of or damage to musical instruments caused by atmospheric conditions or very hot or very cold temperatures.
- Breaking musical instrument strings or reeds.

SECTION 3 - PERSONAL POSSESSIONS AND MONEY

CONTINUED

- Loss or damage caused by theft or attempted theft from any vehicle that is not occupied unless all windows and sunroofs are securely closed and all doors and the boot are locked. **Personal possessions** must be completely hidden within the vehicle in a glove compartment, locked luggage compartment or locked boot.
- Any amount over £1,000 for theft or attempted theft from any vehicle that is not occupied.
- Theft or attempted theft which does not involve force and violence to get into or out of **your home** while **you** have a tenant, lodger or paying guest.
- Theft of **pedal cycle** accessories unless stolen with the cycle.
- Theft of a **pedal cycle** unless **you** have used a lock to secure the cycle when it is left unattended other than at **your home**.
- Loss or damage caused after **your home** has been left **unfurnished** or **unoccupied** for more than 60 days in a row.
- Loss or damage caused by chewing, scratching, fouling or tearing by domestic animals.
- Property insured as **unspecified personal possessions** under event 1 will not include the following:
 - a. Camping equipment, dentures, **pedal cycles** with an individual value over £1,000, vehicles and their parts, watercraft, aircraft, musical instruments used professionally or semi-professionally, firearms, domestic appliances, furniture, furnishing and household goods, or equipment or goods used in connection with **your** business, trade or profession.
 - b. Property **you** can insure under section 1, event 27 - food in freezers.
- **Money** insured under event 1 will not include loss:
 - a. due to loss in value;
 - b. not reported to the police at **your** first opportunity;

SECTION 3 - PERSONAL POSSESSIONS AND MONEY

CONTINUED

Limits

Events 1 – Unspecified personal possessions

The most **we** will pay for any one item or a set of items is £2,000.

Event 1 - Money

The most **we** will pay is £500.

Index linking

We will change **your sum insured** for this section in line with the Consumer Price Index. **We will** not charge you any extra premium for any increases in **your sum insured** due to index linking during each period of insurance. When **we** invite **you** to renew **your** cover, **we** will show **you your** updated **sum insured** and premium for the following period of insurance.

We may choose another appropriate index when **we** adjust **your sum insured**.

How we settle claims

The way **we** settle claims will be the same as that under section 2 - **Contents**.

Event 1

The most **we** will pay for this event is the **sum insured** shown in **your schedule**.

Event 2

The most **we** will pay for each item shown in **your** personal possessions summary **schedule** is the **sum insured** shown against each item.

SECTION 4 - HOME LEGAL ADVICE

Lawphone.

This policy includes access to Lawphone to give advice, 24 hours a day, 365 days a year, on any personal legal matter. The advice **you** get from Lawphone will always be according to the laws of Great Britain and Northern Ireland. **We** may record the calls for **your** and **our** mutual protection and **our** training purposes.

Lawphone: 0370 241 4140.

When **you** call Lawphone **we** will ask **you** for **your** reference number which is 36285 and **you** will then be asked for a brief summary of the problem and these details will be passed on to an advisor who will return **your** call.

GENERAL EXCLUSIONS

Applying to all sections of this policy (other than to sections 5 and 6) in addition to the exclusions listed under what is not covered under the relevant sections.

This **policy** does not cover the following.

1. **War and other hostilities**

Damage, liability, death, injury, disability or any loss caused directly or indirectly by war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power.

2. **Terrorism**

We will not cover loss, damage, liability, cost or expense of whatever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism, regardless of any other cause or event contributing at the same time or in any other sequence to the loss.

GENERAL EXCLUSIONS CONTINUED

For the purpose of this exclusion an act of terrorism means:

- the use, or threatened use, of biological, chemical and/or nuclear force by any person or group of people, whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public or any section of the public in fear.
- any act deemed by the government to be an act of terrorism.

3. **Radioactivity**

Damage to any property, any legal liability or any loss directly or indirectly caused by:

- a. ionising radiation or contamination by radioactivity from any nuclear fuel, or from any nuclear waste from burning nuclear fuel; or
- b. the radioactive, toxic, explosive or other dangerous properties of any explosive nuclear machinery or any part of it.

4. **Sonic bangs**

Loss or damage by pressure waves caused by aircraft and other flying objects. in any other sequence to the loss.

5. **Deliberate act**

Loss, damage, injury or liability resulting from a deliberate act by **you** or **your** domestic staff.

6. **Deception**

Loss or damage that **you** suffered as a result of being deceived into knowingly parting with **your** property.

7. **Loss of value**

Loss of market value after an item is repaired or replaced (Market value is the cost of replacing the item at the time loss or damage taking into account its age and condition.)

GENERAL EXCLUSIONS CONTINUED

8. **Pollution or contamination**

We will not pay for damage caused by or resulting from pollution or contamination, other than damage caused by:

- a. pollution or contamination which results from damage by a cause which is insured by this policy; or a cause which is insured by this **policy**; or
- b. damage by a cause which is insured by this **policy** which results from pollution or contamination.

9. **Existing damage**

Loss, damage, **injury** or liability as a result of an event which happened before the cover under this **policy** started.

10. **Gradual damage**

Loss or damage caused by anything that happens gradually.

11. **Date recognition and computer viruses**

Loss of or damage (including accidental damage) to or breakdown of any electronic equipment, caused directly or indirectly by:

- it failing correctly to recognise or process any data representing a date or part of a date, time; or
- computer viruses.

Electronic equipment includes:

- a. any computer equipment, system or software; and
- b. any product, accessory, equipment or machinery containing, connected to or operated by a data-processor chip.

12. **Confiscation**

Loss or damage caused by officials or authorities confiscating or holding **your** property.

13. **Agreements and contracts**

Loss, damage or liability arising out of or as a result of any agreement or contract **you** have entered into.

GENERAL CONDITIONS

Applying to all sections of **this policy** (other than to sections 5 and 6)

1. **Taking care of your home**

You must keep any property **you** insure in a good state of repair and take care to prevent accidents, **injury**, loss and damage.

2. **Claims**

If **you** need to make a claim, **you** must do the following:

- Tell **us** as at **your** first opportunity about the event and give **us** any information relevant to the claim **we** may need.
- Tell the police about any damage caused by theft, attempted theft, malicious people or if property is lost outside **your home**.
- Allow **us** to enter, take or keep possession of any insured property where the damage has happened. **We** can also deal with any insured property in any way **we** think is appropriate. However, **you** must not abandon any property and leave it to **us**.
- Carry out and allow **us** to take any action **we** need to prevent more damage.
- Tell **us** at **your** first opportunity about any prosecution, inquest or enquiry connected with any injury or damage insured by this **policy**.
- Not pay or offer or agree to pay any money or admit responsibility without **our** permission.
- Allow **us**, in **your** name, to take over and control all negotiations and proceedings which may arise for any claim.
- Allow **us** to take any legal action required to pursue and enforce **your** rights against any other person. **We** will pay any costs or expenses involved.

We will not pay any claims under this insurance unless **you** have kept to this condition. If **we** have already paid for a claim or make a mistaken payment, **you** must repay **us**.

GENERAL CONDITIONS CONTINUED

3. **Repairing or replacing property**

If **we** are going to repair or replace any insured property, **you** must give us any relevant plans, documents, books and information **we** ask for. **We** will always try to repair or replace the property as it was. If **we** cannot **we** will repair or replace the item with the nearest equivalent item, but this may not be the same brand. The most **we** will pay for any one item is the **sum insured**.

4. **Other insurance**

If at the time of any claim **you** have other insurance covering the claim, **we** will only pay **our** share of the claim.

5. **Reflection period (applicable to new policies and renewals)**

You may cancel this **policy** within 14 days of the date **you** receive it. **You** can do this by contacting us at the address shown at the back of this **policy**. If **you** choose to do this, **you** are entitled to a refund of the premium **you** have paid for this insurance. **We** will only charge a pro-rata premium except where an incident has occurred that has reached the **sum insured**, in which case the full annual premium will be payable to **us**.

If **you** choose to cancel this **policy**, any additional optional extras will also be cancelled.

6. **Cancellation (outside the Reflection Period)**

We may cancel this **policy** by giving seven days' notice in writing.

You may cancel this **policy** by either giving **us** written notice or by phoning **us** on 0330 102 1731.

We may cancel **your** policy where there are serious grounds to do so, this includes:

- failure to meet the terms and conditions of this policy. Where **you** are required in accordance with the terms of **your** policy to co-operate with **us**, or send us information or documentation and **you** fail to do so in a way that materially affects **our** ability to process a claim, or **our** ability to defend **our** interests.

GENERAL CONDITIONS CONTINUED

- where there is a failure by **you** to exercise the duty of care regarding **your** property as required by General Condition 1 Taking care of your home.
- failure to co-operate when requested in supplying relevant documentation or information that **we** require.
- suspected fraud or misrepresentation.
- changes to **your** policy details or circumstances that **we** do not cover under our policy.
- use of threatening or abusive behaviour or language, or intimidation or bullying of **our** staff or suppliers.

If **you** cancel the **policy we** will provide a pro-rata refund based on the annual premium payable, as long as **you** have not claimed during the current period of insurance. Where an incident has occurred which may give rise to a claim the full annual premium may be payable to **us**.

If the amount due when **you** cancel the **policy** is more than the amount **you** have paid, **you** must pay the difference.

7. Fraud

If **you** make a claim which is at all false or fraudulent, or support a claim with any false or fraudulent statement or documents, **you** will lose all benefit and premiums **you** have paid for this **policy**.

If **you** fraudulently provided **us** with false information, statements or documents **we** may record this on anti-fraud databases, **we** may also notify other organisations. The Data Protection Notice issued with **your schedule** provides additional information.

8. Premium

You must pay the premium or any agreed instalment when **we** ask. If the premium for this policy is paid by instalments and in the event **you** fail to pay one or more instalments, whether in full or in part, **we** may cancel the policy by giving **you** 14 days notice in writing sent to **your** last known address.

GENERAL CONDITIONS CONTINUED

9. Temporary accommodation

Unless **we** agree otherwise:

- a. the language of the **policy** and all communication relating to it will be English; and
- b. the laws of England and Wales will apply to this contract of insurance.

10. Paying premiums by instalments

If **you** pay **your** premium by direct debit or by any other instalment method:

- should **you** cancel the **policy you** will be required to pay all future premium instalments up to what would have been the renewal date. **You** will also be required to pay all other premiums **you** may owe. If **you** are due a return premium under condition 6 of this **policy your** instalments will be adjusted; and
- **we** have the right to take any premiums **you** have not paid from any claims payment.
- If **you** do not pay an instalment on the date it is due, this will give **us** the right to cancel this **policy** from the date premium was due to be paid.

11. Administration charges

When **you** tell **us** of a change of details **we** will reassess the premium and terms of **your policy**, the change may be subject to an administration charge.

12. Contracts (Rights of Third Parties) Act 1999

Under the Contracts (Rights of Third Parties) Act 1999 or any subsequent legislation, only **you** and **we** may enforce any terms of this **policy**. This will not affect any rights third parties (people other than **you** and **we**) have under other laws.

GENERAL CONDITIONS CONTINUED

13. Changes you must tell us about

We will only give **you** the cover described in this **policy** if the information and declarations **you** have supplied to **us**:

- orally;
- electronically; or
- in writing

at **our** request are complete and correct as far as **you** know.

14. Automatic Renewal

If **you** pay your premium by instalment when **your policy** is due for renewal **we** will renew it for **you** automatically, this saves **you** the worry of remembering to contact **us** prior to the renewal date. **We** will write to **you** 14 days before the **policy** expires with full details of **your** next year's premium and **policy** conditions. If **you** do not want to renew this policy, all **you** need to do is call **us** on 0330 102 1731 before **your** renewal date so **we** don't take payment. If **you** inform **us** after that time charges may apply, please see General Conditions 6 and 7 in **your policy** booklet for details.

Should **we** decide that **we** will not renew **your policy we** will notify **you** in writing prior to the renewal date.

The automatic renewal process only applies if premium is paid by instalment. Adequate home insurance cover is essential in protecting **your** property and the **contents** inside it against many unexpected events such as flood, **subsidence**, theft or **storm**. Individual insurers will form their own view on what is an acceptable risk to them and this may affect **your** ability to obtain cover with another insurer. Please make sure that **you** have arranged adequate alternative insurance before allowing this **policy** to expire.

GENERAL CONDITIONS CONTINUED

15. **Changes you must tell us about**

All information **you** have provided us as shown on **your** most recent 'Your Personal Details' document is relevant to the **policy** cover. If any of the information printed on 'Your Personal Details' is incorrect or has changed, **you** must tell **us** at **your** first opportunity. If **we** are not advised of changes in circumstances, this may affect **your** ability to claim under the **policy**.

When **you** tell **us** of a change of details, **we** will reassess the premium and terms of **your policy**. **You** will be informed of any revised premium or terms and asked to agree before the changes are made. In some circumstances **we** may not be able to continue **your policy** following the changes. Where this happens **you** will be told and the **policy** will be cancelled in line with the provisions of general condition 6.

16. **Joint and additional policyholders**

If there are two or more policyholders named on the **policy**, either may amend the **policy**, make a claim, remove a policyholder or cancel the **policy**.

GENERAL CONDITIONS CONTINUED

Notes

We have used some specific terms in the **policy** wording and the following are explanations to help **you** understand them. These explanations do not form part of the **policy** wording.

Liquidated damages

These are damages where the amount to be paid for failing to keep to the terms of a contract has been agreed by the people involved in the contract, at the time the contract was made.

Punitive or exemplary damages

These are damages that are awarded to punish **you** as well as compensate the other person if **you** did anything deliberately.

Aggravated damages

These are damages that are awarded when **your** behaviour or the circumstances of a case increase the injury to the other person because they are humiliated, distressed or embarrassed.

Multiplying compensatory damages

In some areas of the world the amount of money awarded as compensation is sometimes multiplied two, three or more times as a punishment to **you**.

SECTION 5 - HOME LEGAL PROTECTION

This section only applies to **you** when it is shown in **your** policy **schedule**. If **you** are covered by this section **you** will have been provided with a separate booklet, please read it carefully.

HOW TO MAKE A CLAIM

If **you** need to make a claim under Events 1, 2, 3, 4 and 5 of this section call Lawphone on **0370 241 4140** (lines are open 24 hours, 7 days a week), quote the section reference which is shown under the Home legal protection section on **your** policy schedule. **You** will be asked for a brief summary of the problem and these details will be passed onto an advisor who will call **you** back.

We will tell **you** if we need **you** to complete a claim form. If **we** do, we will send it to **you**.

Please fill the claim form in and send it to:

The Claims Department
Allianz-ALP
PO Box 10623
Wigston
LE18 9HJ

We will contact **you** once **we** have received the claim form.

If **your** claim is covered **we** will appoint the **legal representative** or **mediator** that **we** have agreed to in **your** name and on **your** behalf. **You** must not appoint a solicitor or any other person or organisation to deal with **your** claim.

If **you** have already seen a solicitor or **mediator** before **we** have accepted **your** claim in writing, **we** will not pay any fees or other expenses that **you** have incurred. **We** will only start to cover the **costs** from the time **we** have accepted **your** claim and appointed the **legal representative** or **mediator**.

Please see Condition **4 Freedom to choose the legal representative** of Conditions that apply to sections 1, 2, 3 and 4 for an explanation of when **you** can choose the **legal representative**.

IMPORTANT INFORMATION ABOUT REASONABLE PROSPECTS OF SUCCESS

At all times during **your** legal action **reasonable prospects of success** must exist in order for **us** to begin, and continue, providing cover under this section.

In order for **us** to decide whether **reasonable prospects of success** exist **we** will seek the opinion of the **legal representative**. If **we** are unable to agree with the **legal representative** on whether **reasonable prospects of success** exist, **we** will seek the opinion of any other legally qualified advisor or other expert appropriate to **your** claim that **we** feel it is necessary to consult in order to make **our** decision.

If **we** believe that **reasonable prospects of success** do not exist **we** will end **your** claim.

If **we** end **your** claim due to **reasonable prospects of success** no longer existing because **you** have not complied with Condition 1c or 1d of Conditions that apply to Events 1, 2, 3 and 4, **we** will not pay any **costs** incurred during **your** claim.

If **we** end **your** claim due to **reasonable prospects of success** no longer existing because of any other reason, **we** will pay **costs** incurred up to the date that **we** end **your** claim.

HOW TO MAKE A COMPLAINT

Our aim is to get it right, first time every time. If **you** have a complaint **we** will try to resolve it straight away.

If **we** are unable to, **we** will confirm **we** have received **your** complaint within five working days and do our best to resolve the problem within four weeks.

If **we** cannot **we** will let **you** know when an answer may be expected.

If **we** have not resolved the situation within eight weeks **we** will issue **you** with information about the Financial Ombudsman Service (FOS) which offers a free, independent complaint resolution service.

If **you** have a complaint, please contact our Customer Satisfaction Manager at:

Customer Satisfaction Manager

Allianz- ALP

PO Box 10623

Wigston

LE18 9HJ

Telephone: 0345 0700 886 (line open 9am to 5pm, Monday to Friday excluding Bank Holidays)

Email: alpcomplaints@allianz.co.uk

You have the right to refer your complaint to the Financial Ombudsman, free of charge - but you must do so within six months of the date of the final response letter.

HOW TO MAKE A COMPLAINT CONTINUED

If **you** do not refer **your** complaint in time, the Ombudsman will not have **our** permission to consider **your** complaint and so will only be able to do so in very limited circumstances. For example, if the Ombudsman believes that the delay was as a result of exceptional circumstances.

The Financial Ombudsman Service

Exchange Tower

London

E14 9SR

Website: www.financial-ombudsman.org.uk

Telephone: 0800 0234567 or 0300 1239123

Email: complaint.info@financial-ombudsman.org.uk

Using **our** complaints procedure or contacting the FOS does not affect **your** legal rights.

THE MEANING OF WORDS

Some of the words in this Home legal protection section have specific meanings. These are explained below and have the same meaning wherever they appear in **bold** text throughout this section.

There are additional words with specific meanings that only apply to Event 5 Mediation.

The meaning of the following words apply to all Events of this section.

Home – The private residence that **you** permanently live in, as shown in **your** current household policy schedule.

Partner – Someone **you** are married to or live with as if **you** are married.

Period of insurance – The period shown in **your** current household policy schedule.

We, Us, Our, Allianz – Allianz Legal Protection, a trading name of Allianz Insurance plc.

You, Your – The person, or persons, named in **your** current household policy schedule who has taken out this section and his or her partner, children, parents and parents in-law who permanently live at the home.

The meaning of the following words only apply to Events 1, 2, 3 and 4 of this section.

Civil case – A legal action which does not involve the defence of any criminal prosecution against **you**.

Costs – Where **we** have given our written agreement, **we** will pay the following on **your** behalf.

- The professional fees and expenses reasonably and properly charged by the **legal representative**, on the **standard basis**, up to the Guideline Hourly Rates issued by the Senior Court Costs Office which **you** cannot recover from **your** opponent.
- **Employment tribunal fees** under Event 4 Employment tribunal disputes, that **you** have to pay and which cannot be recovered from **your** opponent.
- **Your** opponent's legal costs and expenses incurred in a civil case which **you** are ordered to pay by a court or **employment tribunal**, or which **you** pay to **your** opponent with **our** written agreement.

THE MEANING OF WORDS CONTINUED

We will only pay **costs** which are necessary and in proportion to the value of **your** claim. If **we** do not agree that the **costs** have been reasonably and properly incurred, or are necessary and in proportion to the value of **your** claim, **we** will have those **costs** assessed in accordance with Condition 3f of Conditions that apply to sections 1, 2, 3 and 4.

We will only start to cover **costs** from the time **we** have accepted **your** claim in writing and appointed the **legal representative**.

Damages – Money that a court says **your** opponent must pay to **you** or money **your** opponent agrees to pay to **you** to settle **your** legal action.

Employment Tribunal – An independent judicial body that has been established to resolve disputes between **you** and **your** employer over **your** employment rights.

Employment Tribunal Fees – Money that **you** must pay, or **your legal representative** must pay on **your** behalf, in order to take your dispute with **your** employer to an **employment tribunal**.

Legal representative – The solicitor or other person appointed with **our** agreement to represent **you** under the terms of this section.

Reasonable Prospects of Success – There are reasonable prospects of success if, at all times during **your** legal action against **your** opponent, it is more likely than not that:

- a court would:
 - i. decide the legal action in **your** favour (this includes making a successful appeal or successfully defending an appeal following a decision made in respect of **your** claim by a court); or
 - ii. award **you** a more favourable settlement than has already been offered by **your** opponent; and
- if **you** are seeking **damages** from **your** opponent, **you** will recover them.

THE MEANING OF WORDS CONTINUED

We explain in more detail how **we** will decide if **your** legal action has **reasonable prospects of success** under 'Important information about reasonable prospects of success'.

Standard basis – The normal method used by the court to assess **costs** which the court decides are proportionate to **your** legal action and have been reasonably incurred by the **legal representative** and **your** opponent.

Territorial limit – The territorial limit for Event 1 Personal injury is Great Britain, Northern Ireland, Channel Islands, Isle of Man, Andorra, Austria, Belgium, Bulgaria, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Gibraltar, Greece, Hungary, Iceland, Italy, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Monaco, Netherlands, Norway, Poland, Portugal, Republic of Ireland, Romania, San Marino, Serbia, Slovakia, Slovenia, Spain, Sweden, Switzerland, Turkey and the Vatican City.

The **territorial limit** for Event 2 Clinical negligence disputes, Event 3 Consumer contract and Event 4 Employment tribunal disputes is Great Britain, Northern Ireland, Channel Islands and the Isle of Man

COVER PROVIDED

This section provides the cover and telephone helplines described under Events 1 to 5. In addition to the terms described for each section, the General exclusions and the General conditions apply to all Events within this section.

EVENT 1 PERSONAL INJURY

What is covered

We will pay the **costs** of **you** taking legal action against **your** opponent arising from an event that **we** and the **legal representative** agree is not **your** fault and which causes **your** death or bodily injury.

The cover provided by this section also includes the **costs** of making or defending an appeal following a decision by a court in respect of **your** legal action.

We will provide this cover as long as:

- the event happens within the **territorial limit** and during the **period of insurance**; and
- the legal action is brought within the **territorial limit**; and
- **we** have given **our** written agreement to **you** making or defending an appeal following a decision by a court in respect of **your** legal action; and
- **reasonable prospects of success** exist.

The most **we** will pay for all claims arising from **your** death or bodily injury is £50,000.

What is not covered

1. Any claim which is only to do with stress, emotional or psychological injury, illness or symptoms. (This does not apply if the stress, emotional or psychological injury, illness or symptoms are caused by **your** death or bodily injury.)
2. Any claim arising from **you** driving a motor vehicle.
3. Any claim arising from medical treatment.

EVENT 2 CLINICAL NEGLIGENCE DISPUTES

What is covered

We will pay the costs of **you** taking legal action against **your** opponent arising from:

- medical treatment or care received by **you**; or
- the failure to provide **you** with adequate medical treatment or care which causes **your** death or bodily injury.

The cover provided by this section also includes the **costs** of making or defending an appeal following a decision by a court in respect of **your** legal action.

We will pay the costs of **you** taking legal action against **your** opponent arising from:

- the medical treatment, series of medical treatments, care or failure to provide adequate treatment or care first occurred during the **period of insurance** and took place within the **territorial limit**; and
- the legal action is brought within the **territorial limit**; and
- **we** have given **our** written agreement to **you** making or defending an appeal following a decision by a court in respect of **your** legal action; and
- **reasonable prospects of success** exist.

The most **we** will pay for all claims arising out of the same treatment or care, or failure to provide adequate treatment or care, which leads to **your** death or bodily injury is £50,000.

What is not covered

We will not provide cover for any claim which is only to do with stress, emotional or psychological injury, illness or symptoms. (This does not apply if the stress, emotional or psychological injury, illness or symptoms are caused by **your** death or bodily injury.)

EVENT 3 CONSUMER CONTRACT

What is covered

We will pay the **costs** of **you** taking legal action against **your** opponent, or defending legal action taken against **you** by **your** opponent, in a dispute arising from a breach of a contract **you** have for:

- buying, selling or renting goods; or
- buying services.

The cover provided by this Event also includes the **costs** of making or defending an appeal following a decision by a court in respect of **your** legal action.

We will provide this cover as long as:

- **you** entered into the contract within the **territorial limit**; and
- the dispute, or series of events leading to the dispute, first occurred during the **period of insurance**; and
- the legal action is brought within the **territorial limit**; and
- **we** have given **our** written agreement to **you** making or defending an appeal following a decision by a court in respect of **your** legal action; and
- **reasonable prospects of success** exist.

The most **we** will pay for all claims arising from the same dispute under **your** contract is £50,000.

What is not covered

1. Any dispute which starts within three months of the date **you** first take out this section, unless the claim is for goods or services **you** bought after **you** first take out this section. (This does not apply if **you** had the same cover under another policy up to the date **you** first take out this section.)
2. Disputes for amounts less than £100.
3. Anything to do with motor vehicles or their parts and accessories.
4. Anything to do with building, converting or extending **your home** or any other property that **you** own.

EVENT 3 CONSUMER CONTRACT CONTINUED

5. Anything to do with work carried out on any land or buildings that are not **your** permanent **home**.
6. Any dispute over the amount of money or other compensation due under an insurance policy.
7. Any dispute arising from a contract **you** have for any:
 - i. pension, savings or investments of any kind; or
 - ii. loan, mortgage or other borrowing; or and
 - iii. other arrangement **you** have with a bank, building society or credit provider.
8. Any dispute arising from the buying or selling of any land or property (this does not apply if the dispute is to do with services **you** have bought which relate to the buying or selling of that land or property).
9. Any dispute arising out of the occupation of **your home**, or any other land or property, under a tenancy agreement, lease agreement or licence to occupy.
10. Anything to do with a contract for **your** business activities.
11. Any dispute with any local authority, public authority or any government department.
12. Any dispute arising from an application for planning permission in respect of **your home** or any other land or property that **you** own.

EVENT 4 EMPLOYMENT TRIBUNAL DISPUTES

What is covered

We will pay the **costs** of **you** taking legal action against **your** employer at an **employment tribunal** in a dispute arising from a breach of **your** contract of full-time employment or permanent part-time employment (this includes the breach of any legal rights **you** have relating to **your** contract of employment).

The cover provided by this Event also includes the **costs** of making or defending an appeal following a decision by an **employment tribunal** in respect of **your** legal action.

We will provide this cover as long as:

- **you** entered into the contract within the **territorial limit**; and
- the dispute, or series of events leading to the dispute, first occurred during the **period of period of insurance**; and
- the legal action is brought within the **territorial limit**; and
- **we** have given **our** written agreement to **you** making or defending an appeal following a decision by an **employment tribunal** in respect of **your** legal action; and
- **reasonable prospects of success** exist.

The most **we** will pay for all claims arising from the same dispute under **your** contract of employment is £50,000.

What is not covered

1. Any legal action against **your** employer that is not dealt with by an **employment tribunal**.
2. Any **costs** or expenses that **you** incur in relation to any disciplinary action, grievance hearing or investigation by **your** employer arising out of **your** contract of employment.
3. Any **costs** or expenses that **you** incur in relation to any compromise or settlement agreement to do with the way **your** contract of employment is ended.

EVENT 4 EMPLOYMENT TRIBUNAL DISPUTES CONTINUED

4. Any dispute which starts in the first **period of insurance** if that dispute arises from a verbal or written warning **you** were given in the six months leading up to the date **you** first take out this section. (This does not apply if **you** had the same cover under another policy up to the date **you** first take out this section.)
5. Anything to do with subcontracting or a contract for services if **you** are self-employed.
6. Any dispute which is only to do with stress, emotional or psychological injury, illness or symptoms. (This does not apply if **your** dispute with **your** employer is to do with discrimination against **you**.)
7. Any dispute which is only about the amount of redundancy pay.

WHAT IS NOT COVERED BY EVENTS 1, 2, 3 AND 4

In addition to the exclusions described in 'What is not covered' by each Event, **we** will not provide cover under any of Events 1, 2, 3 and 4 for the following.

1. Any **costs**:
 - incurred before **we** have accepted **your** claim in writing and appointed the **legal representative**;
 - **we** have not agreed to in writing;
 - **you** have paid directly to the **legal representative** or any other person without **our** permission;
 - relating to an appeal following a decision by a court or **employment tribunal** in respect of **your** legal action unless **we** and the **legal representative** agree that **reasonable prospects of success** exist;
 - that the court orders **you** to pay to **your** opponent on anything other than the **standard basis**. This will normally be because of **your** improper or unreasonable conduct during **your** legal action.

WHAT IS NOT COVERED BY EVENTS 1, 2, 3 AND 4

CONTINUED

2. Any money that **you** have to pay under a contract **you** have with the **legal representative** where the amount of that money is determined by the amount of:
 - legal costs and expenses incurred by the **legal representative** in respect of **your** claim or
 - **damages you** receive from **your** opponent.

These types of contracts are often referred to as conditional fee agreements or damages based agreements.
3. Any Value Added Tax that is payable on the **costs** incurred which **you** can recover from elsewhere.
4. Any fines or other penalties awarded against **you** by a court or **employment tribunal**.
5. Disputes between **you** and:
 - any other person covered by this section; or
 - someone **you** live with or have lived with.
6. Any claim where it is clear from the information available relating to the claim that it has arisen from **your** deliberate or reckless action.
7. Any dispute arising from:
 - an application for a review of the way that a decision has been made by a government authority, local authority or other public body (this is normally referred to as a judicial review); or
 - any other challenge to any existing or proposed legislation.
8. Any dispute arising out of written or verbal remarks which **you** believe have damaged **your** reputation.

CONDITIONS THAT APPLY TO EVENTS 1, 2, 3 AND 4

You must keep to the Conditions to have the full protection of **your** section.

You must:

- a. make **your** claim within six months of the date that the event, or series of events, which gave rise to the dispute first occurred;
- b. not appoint a **legal representative** to represent **you** in **your** legal action;
- c. at all times throughout **your** legal action give the **legal representative** and **us** a complete, accurate and truthful account of all of the circumstances that are relevant to **your** legal action that **you** are aware of, or should have been aware of. This will include details of any agreement between **you** and any other person or organisation;
- d. follow the advice of, and co-operate fully with, the **legal representative** and **us** at all times during **your** legal action. This will include going to all court hearings or other appointments that the **legal representative** asks **you** to attend;
- e. not withdraw **your** claim from the **legal representative** without the written agreement of **us** and the **legal representative**;
- f. get **our** written agreement before making or defending an appeal against the decision of a court or **employment tribunal** in respect of **your** legal action;
- g. instruct the **legal representative** to take **all** reasonable steps to recover **costs** from **your** opponent and pay them to **us**. If **you** do not do this, **we** will have the right to reduce the amount that **we** pay under this section to the amount that **your costs** would have been if **you** had instructed the **legal representative** to take all such reasonable steps;
- h. instruct the **legal representative** to keep to Condition 2 below.

CONDITIONS THAT APPLY TO EVENTS 1, 2, 3 AND 4

CONTINUED

2. The legal representative must:

- a. get **our** written permission before instructing a barrister or other legally qualified advisor or expert in respect of **your** legal action;
- b. tell **us** at the first opportunity once he or she becomes aware of any information or development which will more likely than not mean that :
 - **reasonable prospects of success** no longer exist; or
 - the **damages** that you can recover from **your** opponent will be reduced from the amount that was originally expected by the **legal representative**;
- c. tell **us** at the first opportunity once he or she becomes aware that **you** want to make an offer, or **your** opponent has made an offer, to settle **your** legal action;
- d. report the result of **your** legal action to **us** at the first opportunity after it is finished;
- e. take all reasonable steps to recover **costs** from **your** opponent and pay them to **us**.

3. We will have the right to do the following.

- a. Appoint the **legal representative** in your name and on **your** behalf.
- b. Take over and conduct, in **your** name, any claim or proceedings:
 - before a **legal representative** has been appointed; or
 - that are necessary to recover **costs** that **we** have paid in respect of **your** legal action.
- c. Contact the **legal representative** at any time and have access to all statements, opinions, reports or any other documents relating to **your** legal action.
- d. Appoint a barrister or other legally qualified advisor or expert appropriate to **your** legal action and ask for his or her opinion on the value of **your** legal action and whether **reasonable prospects of success** exist.

CONDITIONS THAT APPLY TO EVENTS 1, 2, 3 AND 4

CONTINUED

- e. End **your** claim if, at any time during **your** legal action **reasonable prospects of success** no longer exist. If, after **we** end **your** claim, **you** continue the legal action and get a better settlement than **we** expected, **we** will pay **your costs** which **you** cannot get back from anywhere else.
- f. Have any legal bill assessed if **we** and the **legal representative** or the representative acting for and on behalf of **your** opponent cannot agree on the level of **costs**. If **we** do this the assessment will be carried out by a court, independent expert in the assessment of costs or other competent party. **We** will not pay any more than the **costs** that are determined as reasonable by the assessment.
- g. Settle **your** claim by paying the amount in dispute. If **we** do this **we** will not pay any **costs** incurred after the date that **we** tell **you**, and any **legal representative**, that **we** have decided to settle **your** claim. (This will not apply where legal proceedings have begun in a court before the date **we** decide to settle **your** claim. In these circumstances **we** will settle the claim by paying **costs** that are necessary to discontinue those legal proceedings as well as the amount in dispute.)
- h. Settle the **costs** covered by this section at the end of **your** legal action.

4. Freedom to choose the legal representative

At any time before **we** and the legal **representative** agree that legal proceedings need to be issued or defended in a court or **employment tribunal we** will choose the **legal representative**.

You have the right to choose the **legal representative** if **we** and the **legal representative** agree that negotiations with **your** opponent have failed to settle the dispute and it becomes necessary for legal proceedings to be issued or defended in a court or **employment tribunal**.

CONDITIONS THAT APPLY TO EVENTS 1, 2, 3 AND 4

CONTINUED

You can also choose the **legal representative** if a conflict of interest arises which means that **our** chosen **legal representative** cannot act for **you** because of his or her professional rules of conduct. **You** must send the name and address of **your** chosen **legal representative** to **us**. If **we** agree to appoint a **legal representative** that **you** choose, he or she will be appointed on the same terms as **we** would have appointed **our** chosen **legal representative**, other than in respect of any agreement **we** and **your** chosen **legal representative** reach over the **costs** that **we** will pay.

If there is any dispute about **your** choice of **legal representative** that **you** and **we** cannot resolve, the matter will be settled using the procedure in General condition e Disputes.

When choosing the **legal representative**, **you** must remember **your** duty to keep the **costs** of any legal proceedings as low as possible.

EVENT 5 MEDIATION

The meaning of the following words only apply to Event 5 of this section.

Costs – Where **we** have given **our** written agreement, **we** will pay the professional fees and expenses charged by the **mediator** on **your** behalf. This cover also includes the professional fees and expenses that the **mediator** will charge the other side.

Mediation – Mediation is an alternative to legal action. It allows **you** to talk to the other side in a dispute and find a solution, without going through the courts. Both sides must agree to take part and there is no guarantee that **you** will reach a solution.

Mediator – The mediator is an independent and qualified person who will help **you** and the other side to reach an agreement. Both **you** and the otherside must agree on the **mediator**, or else the **mediation** cannot take place. The **mediator** does not have the power to make **you** or the other side reach an agreement.

Territorial limit – Great Britain, Northern Ireland, Channel Islands and the Isle of Man.

What is covered

We will pay the **costs** of up to five hours of **mediation** between **you** and the other side for a dispute over the following.

- The boundary of **your home**.
- Noise.
- Access to **your home**.

We will provide this cover as long as:

- the dispute relates to **your home**;
- the dispute starts within the **period of insurance**; and
- **your home** is within the **territorial limit**.

The most **we** will pay for all claims arising from one **mediation** is £2,000.

EVENT 5 MEDIATION CONTINUED

What is not covered

We will not provide cover for the following

1. Any **costs**:
 - incurred before we have accepted your claim in writing and appointed the **mediator**;
 - **we** have not agreed to in writing;
 - **you** have paid directly to the **mediator** or any other person without **our** permission.
2. Any dispute with any local authority, public authority or any government department.

CONDITIONS THAT APPLY TO EVENTS 5

You must keep to the Conditions to have the full protection of this Event of **your** section.

1. **You must:**
 - a. make **your** claim within six months of the date that the event, or series of events, which gave rise to the dispute first occurred;
 - b. not appoint a **mediator** to deal with **your mediation**;
 - c. at all times through out **your mediation** give the **mediator** and **us** all reasonable help and provide a complete, accurate and truthful account of all of the circumstances that are relevant to **your** dispute that **you** are aware of, or should have been aware of. This will include details of any agreement between **you** and any other person or organisation;
 - d. co-operate fully with the **mediator** and **us** at all times during your **mediation**. This will include going to all **mediation** meetings or other appointments that the **mediator** asks **you** to attend;
 - e. not withdraw **your** claim from the **mediator** without the written agreement of **us** and the **mediator** .

CONDITIONS THAT APPLY TO EVENTS 5 CONTINUED

2. **We will have the right to do the following.**
 - a. Choose and appoint the **mediator**.
 - b. Contact the **mediator** at any time and have access to all statements, opinions, reports or any other documents relating to **your mediation**.
 - c. Settle **your mediation** by paying the amount in dispute. If **we** do this **we** will not pay any **costs** incurred after the date that **we** tell you, and the **mediator**, that **we** have decided to settle **your mediation**.
 - d. Settle the **costs** covered by this Event of the section at the end of **your** claim.
 - e. End your claim and recover any costs from you which we have already paid or agreed to pay if the **mediator** refuses to continue the **mediation** with good reason unless we agree to appoint another **mediator** to continue your **mediation**.

GENERAL EXCLUSIONS

In addition to the exclusions described' in What is not covered by each Event **we** will not provide cover under any Event for the following.

- a. Disputes between **you** and **us**.
- b. Any actual or potential dispute, that **you** were aware of, or should have been aware of before the cover under this section started.
- c. Any claim which **you** report to **us** more than six months after the event, or series of events, which gave rise to the dispute first occurred.
- d. Claims directly or indirectly caused by, contributed to or arising from:
 - ionising radiation or radioactive contamination from nuclear fuel or from any nuclear waste arising from burning nuclear fuel; or
 - the radioactive, toxic, explosive or other dangerous properties of any nuclear equipment or nuclear part of that equipment.
- e. Claims arising from war, invasion, riot, revolution, terrorism or a similar event.

GENERAL CONDITIONS

In addition to the Conditions described under Events 1, 2, 3, 4 and 5, the following conditions apply to all Events of this section.

a. **Cancellation rights**

You may cancel this section within 14 days of receiving **your** section wording. **You** can do this by writing to, telephoning or emailing **us** at the address shown below. **We** will refund any money **you** have paid.

At any other time during the **period of insurance**, **you** or **we** may cancel this section by giving 30 days' notice. If **you** cancel this section during this time, **you** will not be entitled to a refund of the money **you** have paid.

We can cancel this section by giving you 30 days' notice if:

- **you** do not pay the premium when **we** ask **you** to; or
- the person who has taken out this section knowingly makes or supports a false, fraudulent or exaggerated claim, as described in General condition h Fraud below. If this happens, **you** will not be entitled to a refund of the money **you** have paid.

You cannot make a claim for an event which occurred after the date this section was cancelled, but cancelling this section will not affect **your** right to claim for an event which occurred before the date this section was cancelled.

Every notice to cancel this section must be given by writing to, telephoning or emailing **us** at **our** address shown below. If **we** give **you** notice, **we** will send it to **your** last known address.

Our address is:

Allianz -ALP
PO Box 10623
Wigston
LE18 9HJ

Telephone: 0370 243 4140 (Lines are open 9am to 5pm, Monday to Friday excluding Bank Holidays)

Email: alpenquiries@allianz.co.uk

GENERAL CONDITIONS CONTINUED

If your Cornhill Direct Home Insurance is cancelled at any time, this section will also be cancelled from the same date.

b. Notices

Every notice which needs to be given under this section must be given in writing. If **you** give us notice, **you** must send it to **our** address shown in General condition a above. If **we** give **you** notice, **we** must send it to **your** last known address.

c. Changes during the period of insurance

If **we** need to make changes to this section, **we** will normally only do this at **your** next renewal date. **We** will not change this section during the **period of insurance** unless:

- **we** are required to do so because of a change in any law applicable to this section; or
- **we** are told to do so by **our** industry regulators (the Financial Conduct Authority or Prudential Regulation Authority); or
- a service provided under this section by any organisation other than **us** is no longer available and **we** must:
 - i. change the provider of the service; or
 - ii. change the service; or
 - iii. remove the service

If **we** do need to change **your** section, **we** will give **you** 30 days' notice in writing of the change and how it will affect **you**.

d. Other insurances and cover

If **you** have another insurance policy, service contract or membership that provides cover for a claim **you** have made under this section, **we** will only pay **our** share of the **costs** of the claim.

GENERAL CONDITIONS CONTINUED

e. Disputes

If there is a dispute between **you** and **us**, the matter may be referred to an arbitrator who will be a solicitor, barrister or other suitably qualified person that **you** and **we** agree to. If **you** and **we** cannot agree on an arbitrator the President of the Law Society or the Chairman of the Bar Council will choose one. Whoever loses the arbitration must pay all the costs involved. If the decision is not clearly made against either **you** or **us**, the arbitrator will decide how **you** and **we** will share the costs. If the arbitrator decides that **you** must pay some, or all of the costs of the arbitration those costs will not be covered by this section.

f. Your agreements with others

We will not be bound by any agreement between **you** and:

- the **legal representative**; or
- the **mediator**; or
- any other person or organisation.

g. Law and language of this section

Unless **we** agree otherwise:

- the language of this policy and all communications relating to it will be in English;
- English law will apply to this contract of insurance.

GENERAL CONDITIONS CONTINUED

h. **Fraud**

If **you** or anyone acting on **your** behalf:

- a. makes any false or fraudulent claim;
- b. makes any exaggerated claim;
- c. supports a claim by false or fraudulent documents, devices or statements (whether or not the claim is itself genuine); or
- d. makes a claim for loss or damage which **you** or anyone acting on **your** behalf deliberately caused;

We will:

- refuse to pay the whole of the claim; and
- recover from **you** any sums that **we** have already paid in respect of the claim.
- supports a claim by false or fraudulent documents, devices or statements (whether or not the claim is itself genuine); or
- makes a claim for loss or damage which **you** or anyone acting on **your** behalf deliberately caused;

We may also notify you that we will be treating the policy as having terminated with effect from the date of the earliest of any of the acts set out in sub-clauses **a - d** above. In that event, **you** will:

- a. have no cover under the policy from the date of the termination; and not be entitled to any refund of premium.

Right of parties

A person or company who is not a part to this section has no right under the Contracts (Rights of Third Parties) Act 1999, or any replacement legislation, to enforce any term of this section, but this does not affect any right or remedy of a third party which exists or is available apart from that Act.

SECTION 6 - HOME EMERGENCY ASSISTANCE

This section only applies when shown in **your schedule**. If **you** are covered by this section **you** will have been provided with a separate booklet, please read it carefully.

IMPORTANT INFORMATION

Your policy schedule shows the policy **you** have chosen, the people covered and any special terms or conditions that may apply.

Your policy does not cover everything. **You** should read this policy carefully to make sure it provides the cover **you** need. If there is anything **you** do not understand, **you** should call Cornhill Direct Home Emergency insurance on **0330 102 1731** or write to Allianz Global Assistance, 102 George Street, Croydon, CR9 6HD.

Insurer

Your Cornhill Direct Home Emergency Assistance insurance is underwritten by AWP P&C SA and is administered in the **United Kingdom** by Allianz Global Assistance (a trading name of AWP Assistance UK Ltd).

How your policy works

Your policy and policy schedule is a contract between **you** and **us**. **We** will pay for any claim **you** make which is covered by this policy and happens during the **period of insurance**.

Unless specifically mentioned, the benefits and exclusions within each section apply to the insured **home**. **Your** policy does not cover all possible events and expenses.

Certain words have a special meaning as shown under the heading 'Meaning of words'. These words have been highlighted by the use of bold print throughout the policy document.

IMPORTANT INFORMATION CONTINUED

Important information you need to tell us

There is certain information that **we** need to know as it may affect the terms of the insurance cover **we** can offer **you**.

You must, to the best of **your** knowledge, give accurate answers to the questions **we** ask when **you** buy **your** Cornhill Direct Home Emergency Assistance policy.

If **you** do not answer the questions truthfully it could result in **your** policy being invalid and could mean that all or part of a claim may not be paid.

If **you** think **you** may have given us any incorrect answers, or if **you** want any help, please call **0330 102 1731** as soon as possible and **we** will be able to tell **you** if **we** can still offer **you** cover.

Cancellation rights

If **your** cover does not meet **your** requirements, please notify us within 14 days of receiving **your** initial policy schedule and return all **your** documents for a refund of **your** premium.

You can contact us at:

Jewry House,
Jewry Street
Winchester
Hants SO23 85Z

By phone- 0330 102 1731

By email - homeinsurance@cornhill-direct.net

If during this 14 day period **you** have asked **us** to perform or provide the services given under this policy then Cornhill Direct is entitled to recover all costs that **you** have used for the service provided.

Please note that **your** cancellation rights are no longer valid after this initial 14 day period.

THE MEANING OF WORDS

We, us, our – Allianz Global Assistance (a trading name of AWP Assistance UK Ltd) which administers the insurance on behalf of the **insurer**.

You – Any person who normally lives in **your home**.

Your – Belonging to the policy holder.

Home – The insured property situated in the United Kingdom, Channel Islands or Isle of Man, the address of which is shown on your schedule. Please note that separate garages, outbuildings and conservatories are not covered.

Beyond economical repair – The point at which our tradesman considers the repair costs (taking into account the parts and labour required) to be more than the value of the boiler. The value is based on its date of manufacture, type and make.

Emergency, emergencies – A sudden unforeseen domestic situation which, if not dealt with quickly, would, in our opinion:

- make **your home** unsafe or insecure;
- damage or cause more damage to **your home**; or
- cause unreasonable discomfort, difficulties or risk to you.

Contractor, contractors – A qualified person who is approved and instructed by **us** to provide domestic emergency repair services.

Primary heating system – The main heating system in **your home**, including a domestic boiler, which serves pipework that is not more than one inch wide. This includes the central heating and hot water systems, and extends to:

- the programmer;
- the central heating pump;
- thermostats.

Please note that **we** do not cover any form of solar heating or non- domestic central heating boilers and associated systems. **Your** central heating boiler should be serviced at least annually, in accordance with the manufacturer's recommendations.

Insurer – AWP P&CSA.

Period of Insurance – The period of cover shown in **your** most recent policy schedule.

WHAT IS CORNHILL DIRECT HOME EMERGENCY ASSISTANCE

Cornhill Direct Home Emergency Assistance is designed to provide professional help and contribute towards the cost of repairs if an unexpected **emergency** happens in **your home**.

This section does not cover routine maintenance in **your home**, or complete replacement of the **primary heating system**.

HOW TO MAKE A CLAIM

It is vital that **you** follow these steps to get help and claim the benefits available under Cornhill Direct Home Emergency Assistance if there is an **emergency** that is covered by this section.

- a. Stay calm. If the **emergency** involves escaping water or electrical faults, turn off the mains supply immediately. The major public supply authority and the emergency services must be told immediately about any **emergencies** which could potentially result in serious damage or injury.

If **you** suspect a gas leak, turn off the mains gas supply and do not use any electrical switches (off or on) or naked flames (for example, matches). **You** must contact National Grid on 0800 111 999 in these circumstances.

- b. Please phone Cornhill Direct Home Emergency Assistance on 0208 603 9810 within 24 hours of the **emergency** happening. Calls are free and the lines are open 24 hours a day, 365 days a year. (Please note that **your** call may be recorded.) It is important to remember that **you** must phone Cornhill Direct Home Emergency Assistance first. Please do not make any arrangements yourself as **we** cannot refund any costs if **you** do not get **our** authorisation.
- c. Tell **us** **your** Cornhill Direct Home Emergency Assistance policy number.
- d. Give **us** as much information as possible about what has happened so **we** can give **you** advice and arrange the most appropriate help for **you**.

HOW TO MAKE A CLAIM CONTINUED

Cornhill Direct Home Emergency Assistance will arrange for an approved **contractor** to come to **your home** and deal with **your emergency**. If an **emergency** is under the heading “Emergencies covered”, Cornhill Direct Home Emergency Assistance will arrange to pay the **contractor’s** fees (up to the limits under the heading “Emergency benefits”) direct to the **contractor**. **You** will be responsible for any extra costs, which may or may not be covered by **your** buildings and contents insurance policy. If the **emergency** is not listed under the heading “Emergencies covered” **you** must pay all the **contractor’s** fees.

- e. **We** must approve overnight accommodation first. **You** must send a receipted invoice, including **your** policy number, to:

Cornhill Direct Home Emergency Assistance
Claims Department
102 George Street
Croydon
CR9 6HD

EMERGENCIES COVERED

Please also refer to “General exceptions” and “General conditions” which also affect the cover provided under this section.

We will provide help for **emergencies** that happen in **your home** during the period of cover and are caused by one or more of the following.

Electrical supply

The sudden, unexpected and complete failure or breakdown of the electricity supply system.

EMERGENCIES COVERED CONTINUED

Primary heating system

Complete failure or breakdown of either the heating or hot-water supply provided by the **primary heating system**.

The heating system must have been properly installed, maintained or repaired as recommended by the manufacturer or installer.

We will expect there to be evidence of servicing and that a valid gas and safety certificate is in force.

If **your** boiler is **beyond economical repair we** will only pay up to £250 (including VAT) towards parts and labour (applies to boilers under 12 years of age only).

Plumbing and drainage

Complete failure or breakdown of either the heating or hot-water supply provided by the **primary heating system**.

Failure of, or damage to, the plumbing or drainage system which will result in water damage inside **your home**. This includes:

- burst pipes;
- overflowing water tanks;
- blocked waste outlets (including toilets); and
- blocked drains.

Uninhabitable accommodation cover

If no-one can live in **your home** as a result of an **emergency, we** will pay all **your** reasonable costs in getting basic accommodation for one night, as long as **we** approve it beforehand.

Uninhabitable accommodation pet cover

If **your home** cannot be lived in because of an **emergency, we** will pay for accommodation for one night for **your** domestic pets that normally live within **your home**, as long as **we** approve it beforehand.

EMERGENCIES COVERED CONTINUED

Gutters and downpipes

The downpiping and guttering has either failed or been damaged, and flooding or water damage inside **your home** is a likely result of that failure or damage.

Lost keys

The loss of the only available key to the **home** so that **you** cannot replace it or get into **your home**.

Security and glazing

Sudden and unexpected failure of, or damage not caused by **you** to, outside locks, doors or windows which means that **your home** is no longer secure.

Roofing

Damage to the roof of **your home** caused by poor weather conditions or fallen trees.

Vermin

If **you** need to remove rats, mice, cockroaches and wasps nests from **your home** (but not for animals and insects already in **your home** before **you** took out cover).

If there is an **emergency** that is covered by Cornhill Direct Home Emergency Assistance, **we** will provide initial advice and arrange for a **contractor** to come to **your home**. **We** will pay up to £250 (including VAT) for each **emergency** towards labour costs (including a call-out charge), materials and parts that are needed for **emergency** repairs in **your home**.

Please note the following:

You must take reasonable care, maintain **your home** and its equipment in good order, and take all reasonable precautions to prevent loss or damage.

If **you** make a fraudulent claim or act fraudulently to get any benefit under this section, all benefits will be cancelled.

We may take proceedings, at **our** own expense, in **your** name to get back any amount **we** have paid under this section.

EMERGENCY BENEFITS

If there is an **emergency** that is covered by Cornhill Direct Home Emergency Assistance, **we** will provide initial advice and arrange for a **contractor** to come to **your home**. **We** will pay up to £250 (including VAT) for each **emergency** towards labour costs (including a call-out charge), materials and parts that are needed for **emergency** repairs in **your home**.

Please note the following:

You must take reasonable care, maintain **your home** and its equipment in good order, and take all reasonable precautions to prevent loss or damage.

If **you** make a fraudulent claim or act fraudulently to get any benefit under this section, all benefits will be cancelled.

We may take proceedings, at **our** own expense, in **your** name to get back any amount **we** have paid under this section.

GENERAL EXCEPTIONS

What is not covered

- Any **emergency** arising within 30 days of the policy start date, unless this is a renewal of your Cornhill Direct Home Emergency Assistance Policy.
- Costs **we** have not authorised. Always telephone us first.
- Routine maintenance of equipment, supplies or services in **your home**.
- Repairs to any system, equipment or facility which has not been installed, maintained or repaired according to the manufacturer's instructions or has been incorrectly used or modified, or which is faulty or inadequate as a result of any manufacturer's or designer's fault.
- Materials or labour charges covered by a manufacturer's, supplier's or installer's guarantee or warranty.
- Cesspits, septic tanks and central-heating fuel tanks.
- Any wilful act by **you**, or something **you** fail to do.

GENERAL EXCEPTIONS CONTINUED

- Claims that happen when **your home** is left unoccupied for more than 30 days in a row.
- Claims arising from the interruption, failure or disconnection of public services to **your home** (including the electricity, water or gas supply), however they are caused.
- Claims arising as a result of wear and tear.
- Any destruction or damage to any property or any loss or legal liability directly or indirectly caused by or arising from:
 - radioactive contamination;
 - war, invasion, act of foreign enemy, act of terrorism, hostilities (whether declared or not), civil war, rebellion, revolution, or military or usurped power;
 - riot, violent disorder, civil commotion, strikes or labour disturbances; or
 - pollution or contamination of any kind.
- Any additional loss resulting from a claim covered by this section.
- Any form of solar heating and any non domestic central heating boiler and associated system or boilers not serviced in accordance with the manufacturer's recommendations. Failure of the **primary heating system** if it is due to **you** not lighting it or turning it on, or failing to adjust timing or temperature controls.
- Replacement of boilers, heaters, radiators or hot water cylinders.
- **We** will not re-attend a boiler repair until **you** have confirmed that a boiler, that has previously been deemed as **beyond economical repair**, has been replaced.
- Relighting of boilers and re-setting of timers/controls (summer/winter).
- Descaling or or any work arising from hard water scale deposits.
- Replacement of boilers, heaters, hot water cylinders or cold water tanks, radiators.
- Underfloor heating, or warm air heating systems, solar heating systems, LPG/ gas oil systems, gas fires.
- Any non domestic central heating boiler and associated system.

GENERAL EXCEPTIONS CONTINUED

- Repairs and maintenance that is covered by a current manufacturer's guarantee.
- The repair or replacement of flues (except for the first metre from the back of the boiler, which is considered to be part of the boiler itself).
- Refilling the system with additives.
- Boilers which are over 12 years old or where the work relates to maintenance or a fault in the heating system.
- Blocked toilets and drains not causing water damage inside the property or replacement water tanks or hot-water cylinders.
- Accidental damage to glass or replacement glass.
- Any matters relating to security alarms.
- Flat roofs.
- Claims for household keys where another set is available to **you** or **you** have another means of access to the home.

GENERAL CONDITIONS

We will act in good faith in all **our** dealings with **you**.

We will only pay the benefit under this section if **you** contact **us** first.

1. **We** will make reasonable attempts to find a suitable **contractor**, as long as the service is not affected by:
 - poor weather conditions;
 - industrial disputes (official or not);
 - failure of the public transport system (including the road network); andother circumstances that prevent access to **your home** or otherwise make it impractical to offer the service.

GENERAL CONDITIONS CONTINUED

2. **We** will be entitled to:
 - refuse to help if, in **our** opinion, **your home** or services have not been maintained in a safe or serviceable condition;
 - refuse to re-attend a boiler repair until **you** have confirmed that a boiler, that has previously been deemed to be **beyond economic repair**, has been replaced;
 - decide on the most appropriate way of providing help, although **we** will take account of **your** wishes whenever possible;
 - settle **our** part of the claim if **you** have any other insurance covering the same loss or damage; and
 - cancel this insurance if **you** give **us** false information or do not give **us** the information **we** need (in such cases **we** will repay any premium that is due to **you**).
3. **You** will be responsible for **contractor's** callout
 - having asked for help, **you** are not at **home** when the **contractor** arrives; or
 - if it is for replacement of boilers, heaters or radiators (boilers which are over 12 years old or where the work relates to maintenance or a fault in the heating system).
4. If **you** need more than the cover provided by Cornhill Direct Home Emergency Assistance, **we** will still offer **you** help up to the section limits shown under the heading "Emergency benefits", but **you** will have to pay excess costs direct to the **contractor** when they provide the service.
5. **We** will arrange to supply and fit replacement parts when they are needed and if they are covered under the section. If **you** ask that better parts are fitted, **you** will have to pay the extra cost. **We** are not responsible for any inconvenience, loss or damage caused by a delay in the manufacturers, or their suppliers or agents, supplying spare parts.

MAKING A COMPLAINT

We aim to provide **you** with a first class policy and service. However, there may be times when **you** feel we have not done so. If this is the case, please tell us about it so that **we** can do **our** best to solve the problem. If **you** make a complaint **your** legal rights will not be affected.

In the first instance, please write to:

Customer Support
Allianz Global Assistance
102 George Street
Croydon
CR9 6HD

Please supply **us** with **your** name, address, policy number and claim number where applicable and enclose copies of relevant correspondence as this will help **us** deal with **your** complaint, in the shortest possible time.

If **you** are not satisfied with **our** final response **you** can refer the matter to the Financial Ombudsman Service for independent arbitration.

How to contact us

020 8603 9810

24 hour Cornhill Direct Home Emergency Assistance

0370 241 4140

Lawphone and Legal Protection Helpline

0330 102 1731

Customer Services

0330 678 5012

Claims

Email: homeinsurance@cornhill-direct.net

To improve our customer service, calls may be recorded or monitored

Cornhill Direct is a registered trademark of Allianz Insurance plc, licenced for use as a trading style by Liverpool Victoria Insurance Company Limited. Liverpool Victoria Insurance Company Limited registered in England and Wales number 3232514 is authorised by the Prudential Regulation Authority and regulated by the Financial Conduct Authority and the Prudential Regulation Authority, registered number 202965. Registered address: 57 Ladymead, Guildford, Surrey, GU1 1BD.

Cornhill
Direct